

A HUMAN RIGHTS REPORT

PRIVATE PROPERTY UNDER WAR MADNESS

A HUMAN RIGHTS ANALYSIS OF PROPERTY DISPOSSESSION,
FORCED EVICTION AND LOSS OF LIVELIHOOD
UNDER ULA/AA AUTHORITY



2020



ARSON ATTACK

Shrimp farm and property set on fire amid land dispute.

2024



CRIMINAL VERDICT

ULA/AA Court convicts 5 persons under Penal Code Section 436.

2026



PRESSURE & THREATS

Forced to "donate" land, threatened with seizure, arrest and prosecution.

2026



FORCED EVICTION

Armed forces arrive, demand eviction and take control of the land.

IN CONFLICT, POWER SHOULD NOT REPLACE LAW.
PROPERTY RIGHTS ARE HUMAN RIGHTS.



RIGHT TO PROPERTY



RIGHT TO DUE PROCESS



RIGHT TO LIVELIHOOD



RIGHT TO SECURITY

DOCUMENTED. ANALYZED. ACCOUNTABLE.
FOR JUSTICE. FOR RIGHTS. FOR PEOPLE.

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Introduction

This report documents and analyzes the dispute concerning U Khin Maung Hla^[1]'s shrimp farming business and land, based on a transcription extracted from a confidential audio recording containing U Khin Maung Hla's own testimony, together with available evidence relating to land ownership, business operating rights, taxation, and other relevant documentation.

According to U Khin Maung Hla's testimony, the events originated in 2007, when he began operating a shrimp farming business in cooperation with residents of Wa-Kauk-Gyi Village. Subsequently, due to difficulties and losses in the business, he purchased some parcels of land from local villagers. He stated that on the night of June 15, 2020, at approximately 9:00 p.m., his shrimp farm was burned down and he was forced to leave the area. ULA/AA's Nova (1) Military Region subsequently conducted an investigation into the incident and, on April 5, 2024, issued a judgment against those found responsible.

However, in 2026, after the land ownership was reportedly re-examined, ULA/AA allegedly pressured U Khin Maung Hla to surrender the land to ULA/AA. In particular, on May 9, 2026, he was allegedly asked to write a statement declaring that he would "donate" the land to the Arakan Army, and was reportedly told that the land would be confiscated if he refused to donate it. These events constitute key aspects of the dispute.

Subsequently, on July 21, 2026, U Khin Maung Hla was reportedly notified that he was required to leave the land permanently. On August 3, 2026, armed soldiers and police allegedly arrived at the site and threatened that he would be arrested or prosecuted if he refused to leave. During the incident, he reportedly requested an official order or documentation relating to the confiscation of the land, but no such documents were provided to him.

Accordingly, the circumstances raise human rights concerns relating to the loss of land and property, disruption of livelihood, forced displacement or eviction, threats and intimidation, and the alleged failure to follow lawful procedures. These concerns warrant documentation and further analysis. However, the present report is primarily based on the testimony of U Khin Maung Hla. A response from ULA/AA, together with relevant official orders, land records, and other supporting documentation, should be obtained and independently verified before definitive conclusions are reached.

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Chronology of Events

Date / Period	Event	Key Details / Significance
2007	Establishment of shrimp farming business	According to U Khin Maung Hla's testimony, he began operating a shrimp farming business in cooperation with residents of Wa-Kauk-Gyi Village.
2007–2020	Expansion and land acquisition	Due to difficulties and losses in the business, U Khin Maung Hla reportedly purchased some parcels of land from local villagers. He continued operating the shrimp farm.
15 June 2020	Burning and destruction of the shrimp farm	At approximately 9:00 p.m. , the shrimp farm, including buildings and property, was reportedly attacked and burned. U Khin Maung Hla was forced to flee the site.
2020	Complaint and investigation	U Khin Maung Hla reportedly complained to ULA/AA's Nova (1) Military Region concerning the destruction and identified those he alleged were responsible.
2020–2024	Judicial proceedings	Witnesses were examined, including U Khin Maung Hla and other prosecution witnesses. The accused persons denied involvement and presented their own witnesses.
5 April 2024	Judgment in the 2020 case	According to the available case record, the ULA/AA judicial process found the accused persons guilty under Section 436 of the Penal Code in relation to the burning and destruction of the complainant's property.
2026	Re-examination of land ownership	U Khin Maung Hla's land ownership was reportedly reconsidered by ULA/AA, with the land allegedly characterized as land that had been improperly acquired from local farmers and subject to ULA/AA administration.
9 May 2026	Alleged pressure to "donate" the land	U Khin Maung Hla reportedly stated that he was asked to write that he would "donate" the land to the Arakan Army and was allegedly told that the land would be confiscated if he refused.
21 July 2026	Notice to leave the land	U Khin Maung Hla was reportedly informed that he had to leave the land permanently.
3 August 2026	Armed enforcement / eviction	Armed soldiers and police reportedly arrived at the property. U Khin Maung Hla was allegedly threatened with arrest or prosecution if he refused to leave.
3 August 2026	Request for official documentation	U Khin Maung Hla reportedly requested an official order or documentation concerning the land confiscation, but no such documents were provided.
August 2026	Loss of possession and livelihood	According to the reported account, U Khin Maung Hla left the property, resulting in the loss of possession and disruption of his shrimp-farming livelihood.
Present	Documentation and further verification	The allegations raise concerns regarding property rights, forced eviction, livelihood, threats/intimidation, due process, and

		compensation. Further verification of ULA/AA's legal basis, official documents, land records, and its response remains necessary.
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Summary of the Timeline

2007 → 2020: Establishment and operation of the shrimp farm

15 June 2020: Destruction of the property

5 April 2024: ULA/AA judicial judgment concerning the destruction

9 May 2026: Alleged demand to “donate” the land

21 July 2026: Order/notice to leave

3 August 2026: Armed enforcement and loss of possession

Footnote

¹ U Khin Maung Hla is the name used in this report; his name as recorded on his National Registration Card (NRC) is U Tin Wai.

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CHAPTER (1)

The Arson and Destruction of U Khin Maung Hla's Shrimp Farm: Criminal
Case No. 14 (2023)

Case Background and Context

This report documents and analyzes the criminal proceedings arising from the burning and destruction of U Khin Maung Hla (also known as U Tin Wai)'s shrimp-farming compound in Wakaunggyi Village, Myebon Township, on 15 June 2020. The case was prosecuted before the Regional Court of Nova (1) Military Region under the Arakha People's Government Judiciary Department, with the accused charged under **Section 436 of the Penal Code** for allegedly setting fire to and destroying buildings used as residences and for the storage of property.

According to the case record, U Khin Maung Hla had operated a shrimp-farming business on Plot No. (18-B), Kyi-Sa-Toung Field, for approximately 13 years. On the night of the incident, his shrimp-farm huts and other property were allegedly burned and destroyed. The prosecution presented testimony from U Khin Maung Hla and several other witnesses, together with documentary photographs, a sketch map, and video evidence. The accused persons denied involvement and presented defense witnesses who provided alibis or disputed the allegations.

The judgment dated **5 April 2024** found the accused persons guilty under Section 436, concluding that the prosecution evidence sufficiently established that the accused had participated in the destruction of the plaintiff's property. Importantly, the Court's reasoning also identified an underlying **land-related dispute** as a motive for the attack. The judgment stated that the accused were dissatisfied with U Khin Maung Hla's possession and continued operation of the shrimp farm and intended to drive him away from the area.

This case is particularly significant because the 2024 judgment did not merely establish the destruction of physical property; it also recorded the existence of a dispute concerning the **ownership and use of the land on which the shrimp farm was operated**. The Court nevertheless treated the burning and destruction of the property as a criminal offence and imposed liability under Section 436. Thus, the case record provides an important historical reference for examining the subsequent developments concerning U Khin Maung Hla's land and shrimp-farming business in 2026.

The present report therefore focuses not only on the 2020 incident and judicial proceedings, but also on the relationship between the **2020 criminal judgment and the subsequent 2026 land dispute and alleged transfer of possession**. It considers whether the findings and factual record of the 2020 proceedings have relevance to the later treatment of U Khin Maung Hla's property and livelihood.

At the same time, the analysis distinguishes between **facts established or recorded in the 2020 case** and allegations concerning events in 2026. The latter should be independently verified through land records, administrative orders, notices, transfer or acquisition documents, compensation records, and statements from both U Khin Maung Hla and the relevant ULA/AA authorities. This distinction is important to ensure that the report remains evidence-based and does not treat an allegation as an established fact.

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The Photos of Verdict (Original)

တာဝန်ခံမိတ္တူမှန်
စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

အာရက္ခပြည်သူ့အစိုးရ

အခွင့်ရအရာဟိ

တရားရုံးဌာန

နီဗာ(၁)စစ်ဒေသ၊ဒေသတရားရုံးတော်၌



၂၀၂၃ - ခုနှစ်၊ ရာဇဝတ်ကြီးအမှုအမှတ်- ၁၄

ဒေသတရားသူကြီး
နီဗာ(၁) စစ်ဒေသ ၊ ဒေသတရားရုံး

၂၀၂၄ - ခုနှစ်၊ ဧပြီလ ၂၅ ရက်

ဦးခင်မောင်လှ

၁။ ထွန်းမောင်သာပါ(၅)ဦး

(ခ) ဦးတင်ဝေ

၂။ လှစိန်အောင်

--- နှင့် ---

၃။ ကျော်စိန်နု

၄။ လှမောင်စိန်

၅။ သန်းရွှေ

(တရားလို)

(တရားခံများ)

တရားလိုအတွက် - ဒေါ်အောင်မေရီ (ဒေသဥပဒေအရာဟိ)

တရားခံအတွက်များအတွက် - ဦးဟန်မင်လိုင် (တရားလွှတ်တော်ကြီး)

ရာဇဝတ်ကြီးဥပဒေပုဒ်မ- ၄၃၆ အရစွဲဆိုမှု

စီရင်ချက်

တရားလို ဦးခင်မောင်လှ (ခ)ဦးတင်ဝေ ပိုင်ဆိုင်သော တဲ(၁၁)လုံးနဲ့ တဲပေါ်ဟို ပစ္စည်းများနဲ့၊
ဖိုင်ဘာလောင်း(၁)စီးကိုပါ မီးရှို့ဖျက်ဆီးခဲ့သော ထွန်းမောင်သာ၊ လှစိန်အောင်၊ ကျော်စိန်နု၊ လှမောင်စိန်၊ သန်းရွှေ
ရဲ့အား ဥပဒေအရ အရေးယူပီးရန် တိုင်ကြားရာမှ ပေါ်ပေါက်လာသော အမှုတစ်ခုဖြစ်သည်။

အမှုမှာ တရားလိုသည် မြေပုံမြို့နယ်၊ ဝကောက်ကြီးကျေးရွာအနီး ကွင်းအမှတ် (၁၈ - ၁) ကျွဲစား
တောင်ကွင်းကို ပုရွန်ကွင်းအဖြစ် (၁၃)နှစ်ခန့်လုပ်ကိုင်စားသောက်လာရာ (၁၅.၆.၂၀၂၀)ရက်နိန့် ညဉ့်(၀၈:၃၀)
ခန့်အချိန်တွင် ဝကောက်ကြီးကျေးရွာနိန့် ဦးထွန်းမောင်သာမှ ဦးဆောင်ပြီး ထိုသူ၏နောက်ပါလာသူများ
ဖြစ်သော ဦးလှစိန်အောင်၊ ဦးကျော်စိန်နု၊ ဦးလှမောင်စိန်၊ ဦးသန်းရွှေရဲ့မှ တရားလိုပိုင်ဆိုင်သော ကွင်းအမှတ်
(၁၈ - ၁) ကျွဲစား တောင်ကွင်းဟို တဲ (၁၁)လုံးတိတိနဲ့ ဖိုင်ဖာလောင်းတစ်စီးနှင့် တဲအတွင်းဟိုသော ပစ္စည်းများ
ကိုပါ အားလုံးကို မီးတိုက်ဖျက်ဆီးခဲ့ကြောင်း၊ ၎င်းကို တရားလိုနဲ့ တရားလို၏ အလုပ်သမားများဖြစ်သော
ကျော်သိန်း၊ ကျော်ဆန်းလှိုင်၊ မရွှေရီခိုင်ရဲ့လည်း မြင်တွေ့ရကြောင်း၊ ၎င်းမီးတိုက်ဖျက်ဆီးရာတွင် ဆုံးရှုံးလား
ခသော ကာလတန်ဖိုးမှာ ကျပ်သိန်း (၇၅၂)သိန်းခန့် ဆုံးရှုံးခဲ့ရကြောင်း၊ တရားလိုပိုင်ဆိုင်သော တဲ (၁၁)လုံးတိတိ
ဖိုင်ဘာလောင်းတစ်စီးနှင့် တဲအတွင်းဟိုသော ပစ္စည်းများကိုပါ အားလုံးကို မီးတိုက်ဖျက်ဆီးခဲ့သော
မြေပုံမြို့နယ်၊ ဝကောက်ကြီးကျေးရွာမှ ထွန်းမောင်သာ၊ လှစိန်အောင်၊ ကျော်စိန်နု၊ လှမောင်စိန်၊ သန်းရွှေ ရဲ့အား
ဥပဒေအရ အရေးယူပီးရန် တိုင်ကြားရာမှပေါ်ပေါက်လာ အမှုဖြစ်လေသည်။

တာဝန်ခံမိတ္တူမှန်

စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

Figure 1

တာဝန်ခံမိတ္တူမှန်
စစ်ဆေးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၂

အမှုတွင်တရားလိုနှင့်လိုပြသက်သီများအဖြစ် ဦးခင်မောင်လှ၊ ထွန်းနိုင်၊ ဦးကျော်သိန်လှ၊ မရွှေရီနိုင်၊ ရှိအားစစ်ဆေးသည်။

ဦးခင်မောင်လှ (လိုပြ - ၁)မှ ရုံးရှေ့ထွက်ဆိုသည်မှာ လွန်ခဲ့သော ၂၀၂၀-ခုနှစ်၊ ဇွန်လ(၁၅)ရက်က ည(၈:၃၀)အချိန်တွင် ဝကောက်ကြီးကျေး ရွာ၊ ပုဇွန်ကာရီထဲတွင် ဆောက်ထားသည့် ကျွန်တော်၏တံခွန် ဖုန်းပြောခိုခိုရုံ နံရံတွင် နံရံခွက်ခွက်တို့ တရားခံ(၅)ဦးနဲ့အတူ ရွာမှ လူ(၂၃)ဦးရှိရာ ၎င်းရဲ့နံရံထဲသို့ ရွာဖက်မှ ချီတက်လာကာ ပုဇွန်ကွင်းထဲသို့ဟိုသည့် ကျွန်တော်၏ညီဖြစ်သူ ကျော်ဆန်းလှိုင်(ခ)ထွန်းလှိုင်၏တံခွန်ကို ဦးသန်းရွှေမှ ခါးဖြင့်ခွတ်ပါကြောင်း၊ ယင်းနောက် ဦးလှစိန်အောင်၏တူအောင်နိုင်စိုးရဲ့က အသင့်ပါ လာသော ဆီစိမ့်ထားသည့်မီးခွေကို တံခေါင်ထက်သို့ ပိုက်တင်ပါကြောင်း၊ ယင်းနောက် ထိုတံခွန် ပေါ်(၂၀)ခန့်ပီးသည့် ကျွန်တော်နီသည့်တံခွန် နံရံတွင် နံရံခွက်ခွက်(၅)ဦးအပါအဝင် ရွာမှလူ(၂၃)ဦးရှိရာ ရောက်လာပါကြောင်း၊ ထိုအခါ ကျွန်တော်မှာ တံဟိုကွင်းပြင်၌ ထိုင်၍ ဖုန်းပြောနေပါကြောင်း၊ ထိုစဉ် မောင်သန်းရွှေနှင့် စွပ်စွပ်ရသည့်သန်းရွှေရဲ့မှာ ကျွန်တော်ထံသို့လာပြီး ၎င်းရဲ့တွင် ပါလာသည့် ခါးဖြင့် ကျွန်တော်ကို လာခွတ်ပါကြောင်း၊ မောင်သန်းရွှေက ကျွန်တော်ကို ခွတ်ရာ အနားတွင်ဟိုသည့် ထင်း ပုံမှ ထင်းပိုင်းကိုယူကာ ကာခံလိုက်ပါကြောင်း၊ ထိုအခါ နံရံတွင် စွပ်စွပ်ရသည့် သန်းရွှေမှလိုက်ခွတ်ကြောင်း၊ မောင်သန်းရွှေမှလည်း ကျလားသည့်ခါးကို လိုက်ကောက်ကာ ကျွန်တော်ကို ပြန်ခွတ်ရာ ကျွန်တော်၏ဘယ်ဘက် လက်လှုပ်ကို (၂)ချက်ကျ၍ ကျွန်တော်ထိုခိုရာမှ ထွက်ပြီး ပါကြောင်း၊ ထိုအခါ နံရံတွင်စွပ်စွပ်ရသည့်ထွန်းမောင်သာက ယင်းသူကို မလွတ်စီမံကွပ်ကဲ အခြားလူများကို ပြောပါ ကြောင်း၊ ကျွန်တော်မှာ တံဟို၌ ဝက်မွီးစားသည့် ဝက်ရုံအောက်သို့ ဝင်ပြီးပါကြောင်း၊ ထိုအခါ နံရံတွင်စွပ်စွပ်ရသည့် ဦးကျော်စိန်နုက အော်ပြီး ဦးလှစိန်အောင်ထံမှ ခါးဆီဖူးကို ယူခဟု ပြောသည်ကို ကြားပါကြောင်း၊ ယင်းနောက် ဦးလှဖြူချေဆိုသူနှင့် ဦးကျော်စိန်နုရဲ့မှာ ကျွန်တော်နီသည့် တံခွန်တွင်း သို့ဝင်ကာ အခန်းထက်တွင် ခါးဆီသွန်ပါ ကြောင်း၊ ထိုသို့ ခါးဆီသွန်သည်ကို ကျွန်တော် ဝက်ရုံ အောက်မှ မြင်တုံ့ခြင်းဖြစ်ပါကြောင်း၊ ကျွန်တော် နီထိုင်သည့်တံခွန် ကျွန်တော်ပုန်းနီသည့် ဝက်ရုံမှာ အကျယ်(၁၀)ပေ၊ အမြင့်(၆)ပေခန့်ဟိသော ကာရီတစ်လုံးခြား ပါကြောင်း၊ ယင်းနောက် နံရံတွင်စွပ်စွပ် ရသည့်နံရံ တစ်ခြား၎င်းရဲ့နံရံပါလာသည့်လူများမှာ ကျွန်တော်တံထက်သို့ တက်ပြီး ကျွန်တော်ဝတ် ဆင်သည့် ဗျာလ(၅)မူးသာခန့်ဟိ ရွှေစင်ရင်ထိုးတစ်ခု၊ တစ်ကျပ်သားခန့်ဟိ ခွီးလိုင် ပတ်ရွှေလက် စွပ်(၁)ကွင်း၊ ဦးသားသိန်း(၂၀)ရဲ့ကို ကျွန်တော်၏တံခွန်တွင်း၌ သေတ္တာဖြင့် ထည့်ထားသည်ကို ထိုစွပ်စွပ်ရသည့် နံရံ အခြားလူများက တံအောက်သို့ချယူလာပါကြောင်း၊ သေတ္တာတွင် ပိတ်ထားသည့် သေတ္တာကိုလည်း ၎င်းရဲ့တွင်ပါလာသည့် ခါးဖြင့် ကန့်လိုက်ကာ သေတ္တာအတွင်းဟိ ပစ္စည်းများ အားလုံးကို ယူကာ ထိုသေတ္တာအား ပုဇွန်ကာရီပြင်ဖက်သို့ ဝဲပလိုက်ပါကြောင်း၊ ယင်းနောက် ကျွန်တော်နီသည့်တံကို ထိုသူများ အားလုံးက ဝိုင်း၍ တိုက်ကြပါကြောင်း၊ မီးတိုက်၍ မီးလောင်နီ သည်ကို ကျွန်တော်နီသည့်တံခွန် ကိုက်(၅၀၀) ခန့်တွင် နီထိုင်သည့် ကျွန်တော်တပည့်များက ပေါ့ဆမီးဟုထင်ကာ လိုက်လာပါကြောင်း၊ ထိုသူများမှာ မောင်သန်းဌေးနဲ့ ဦးခင်မောင်ရဲ့ဖြစ်ပါကြောင်း၊ ကျွန်တော်၏တပည့်များမှာ ကျွန်တော်၏တံခွန် ရောက်လာခိုင်း နံရံတွင်စွပ်စွပ်ရသည့်နံရံတစ်ခြားပါ လာသည့် သူများက လောက်လေးဂွဖြင့်ပိုက်၍ မင်းနိုင်၏ရင်ဘတ်ကို လောက်စာလုံးထိမှန်ပါကြောင်း၊ ထိုအခါ မင်းနိုင်နဲ့အတူ လိုက်ပါလာသည့် မင်းနိုင်၏မယား မစိုးသန်းနဲ့ (၇)နှစ်သား တစ်ဦးလည်းပါလာပါကြောင်း၊ မစိုးသန်းက မောင်သန်းဌေးနဲ့ ဦးခင်မောင်ဆိုသူအား ၎င်း၏လင် ဖြိုက်သူကို လေးဂွဖြင့် မပိုက်ပါကေ၊ အသက်ကို ချမ်းသာပီးဟု ပြောဆိုတောင်းပန်ပါကြောင်း၊ ယင်း နောက် ဦးခင်မောင်နဲ့ မောင်သန်းဌေးရဲ့မှာ ကျွန်တော်အလုပ်သမားများထား သည့်တံများကို လားကာ လိုက်လံရှာဖွေ ပါကြောင်း၊ ထိုစဉ် လဖြူချေနဲ့ c/မရွှေရီမှာ ကျွန်တော်တံခွန် ကပ်လျက်ဟိ သည့် မရွှေရီ၏တံကိုတက်ပြီး ခါးဆီဖြင့်

အစွင့်ရအရာဟိ မီးတိုက်ရန်လုပ်ပါကြောင်း၊ ထိုအခါ မရွှေရီနိုင်က တံထက်မှ ပစ္စည်းများကို ချွန်ပီးရန် ပြောဆိုကာ


ဒေသတရားသူကြီး
နိုဗာ(၁) စစ်ဒေသ၊ ဒေသတရားရုံး

Figure 2

တာဝန်ခံမိတ္တူမှန်
စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၃

ထိုသူများက နှင်မုဒိမ်းအကျင့်ခံချင်လားဟု ပြန် ပြောပါကြောင်း၊ ထိုစဉ် ထိုသူနှစ်ဦးက မရွှေနိုင်၏ တဲကို မီးစတင်တိုက်ပါကြောင်း၊ မရွှေနိုင်တွင် ၎င်း၏ တံ၌ မွီးမြူထားသည့် ကြက်အကောင်(၁၀)ခန့်လည်း ဟိပါကြောင်း၊ ထိုကြက်များကိုလည်း မီးတိုက် ရာတွင် ပါဝင်သည့် မောင်ကျော်သိန်းနန့်၊ မောင်အေးသိန်းရီ၊ အရှင်ဖမ်း ယူလာသည်ကိုလည်း တွေ့ရပါကြောင်း၊ ထိုအခါ ကျွန်တော်မှာ ဝက်ရုံအောက်မှ စွပ်စွဲခံရသူနန့်၊ တစ်ခြားပါလာသည့် လူများ မီးတိုက်နီသည်ကို မိနစ်(၂၀)ခန့် ကြည့်နိုင်ပါကြောင်း၊ ရုံးဟိုစွပ်စွဲခံရသူနန့်၊ တစ်ခြားလူများမှာ ကျွန်တော်ကို ဖြိုလှန်၍ ရှာနီကြသဖြင့် ကြောက်ရွံ့လာကာ ဝက်ရုံအောက်မှ ထွားပြီး မြစ်ထဲသို့ ဆင်းပြီးလာပါကြောင်း၊ ထိုမဟိတ်မြစ်မှ မှိုင်းချောင်းချေပိုက်ဆိုင်သို့ ရိုကူး၍ (၅)နာရီခန့် ရှိမိမိ၍လာ ရပါကြောင်း မှိုင်းချောင်းချေ ပိုက်ဆိုင်တွင် ကျွန်တော်ထံ၌ ပုစွန်သွင်းသည့် မောင်မောင်စိုးဆိုသူထံ သို့ လာရောက်ကာ အကူအညီ တောင်းခံပါကြောင်း၊ ထိုပိုက်ဆိုင်မှတစ်ဆင့် ကျွန်တော်မိသားစုထံ သို့ ဖုန်းဖြင့် အကူအညီတောင်းခံပါကြောင်း ရုံးဟိုစွပ်စွဲခံရသူရီ၊ ဦးဆောင်သည့်အဖွဲ့မှ တဲ(၁၃)လုံး၊ ဖိုင်ဘာစက်လှေ(၁)စီး၊ မီးစက်(၁)လုံး၊ ပုစွန် အခြောက်ခံစက်(၁)လုံး၊ ပဲ့ချိတ်စက် (၅)လုံး၊ တဲဟို၌ ပုံထားသည့် ကပိုင်သားထင်းပိုင်း (၂၀၀၀၀)ခန့်၊ မီးသီး(၅၀၀)အိတ်နန့်၊ တစ်ခြားပစ္စည်းများအားလုံး တစ်ခုမကျန်မီးတိုက်ရာ၌ ပါလားပြီး ပျက်စီးလာပါကြောင်း ယင်းနောက် တဲမှရလာသည့် ရွှေနန့်၊ ငွေများကို ရုံးဟိုစွပ်စွဲခံရသူနန့်တစ် ခြားပါလာသည့်သူများက ဝကောကြီးကျေးရွာ မောင်မောင် ကျော်အိမ်၌ ခွဲဝိကြသည်ဟု ဖုန်းဖြင့် ပြောပြ၍ သိရပါကြောင်း၊ ထိုသို့ဖြိုက်ပွားပြီးနောက် (၃)ရက်ခန့် အကြာတွင် ULAတာဝန်ခံဖြိုက်သူ ဦးခိုင်ထူးအား ရုံးဟို စွပ်စွဲခံရသူများ အပါအဝင် မီးတိုက်သူ (၂၈) ယောက်ကို ဥပဒေအရ အရေးယူပီးပါရန် တိုင်တန်းခံပါကြောင်း၊ ထိုသို့တိုင်တန်းပြီး နောက် (၅)ရက် အကြာတွင် AA စစ်ဦးစီးချုပ် ဗိုလ်ချုပ်ထွန်းမြတ်နိုင်ထံသို့ ကျွန်တော်၏ Telegramအကောင့်ဖြင့် AAစစ်ရုံးချုပ်သို့ တိုင်တန်းခံပါကြောင်း၊ ထိုသို့ တိုင်တန်းပြီးနောက် (၁)ပတ်ခန့်အကြာ ဇွန်လ(၂၂)ရက် တွင် ဗိုလ်မှူးကြီးခေါင်းရဲက ကျွန်တော်နန့်၊ ရုံးဟိုစွပ်စွဲခံရသူများအပါအဝင် မီးတိုက်သူ(၆)ဦးအား နိဗာ(၁)စစ်ဒေသရုံးသို့ ခေါ်ပါကြောင်း၊ ဗိုလ်မှူးကြီးခေါင်းရဲက ကျွန်တော်တိုင်တန်းသည့်အမှုနန့် ပတ်သက်၍ ရှင်းလင်းပီးရန် ၂၀၂၁-ခုနှစ်၊ တန်းခွဲလတွင် ရှင်းပီးမည်ဟု ပြောဆိုပါသည်။ ကျွန်တော်နန့်၊ ရုံးဟိုစွပ်စွဲခံရသူရီကိုလည်း နီအိမ်သို့ အသီးသီးပြန်လွှတ်လိုက်ပါကြောင်း၊ ရုံးဟိုစွပ်စွဲခံရ သူနန့်တစ်ခြား ပါလာသည့် သူများမှာ ကျွန်တော်ပိုင်သည့် ပုစွန်ကွင်းနန့်တဲများအားလုံးကို မီးတိုက် ပျက်ဆီးခြင်းနန့်၊ ထိုမီးတိုက်ရာ တွင်ပါဝင်သည့် ပစ္စည်းများအားလုံး၏ စုစုပေါင်းကာလတန်ဖိုးမှာ သိန်း(၇၅၂)ကျပ်ခန့် ဟိပါ ကြောင်း၊ ရုံးဟိုစွပ်စွဲခံရသူများနန့်၊ မီးတိုက်ရာတွင် ပါဝင်သည့်အခြားလူ များကိုလည်း ယခုအမှုဖြင့် အရေးယူပီးစီလိုပါကြောင်း၊ အမြဲတမ်းရန်ပြုပါကြောင်း၊ ပထမသတင်းပီးတိုင် ချက်ပေါ်၌ တိုင်တန်းသူ ဦးခင်မောင်လှ(ခ)ဦးတင်ဝေခီရာ၌ ရိုးထိုးထားသော လက်မှတ်နန့်လက်ဗွေ မှာ ကျွန်တော်၏လက်မှတ်နန့် လက်ဗွေဖြိုက်ပါကြောင်း၊ ကျွန်တော်မှာ အမှုတွဲပါ တိုင်ချက်အား ကျွန်တော်ကိုယ်တိုင် ကြည့်ရှုပြီးဖတ်ကြည့်ရာ ကျွန်တော်တိုင်တန်းထားသည့်သူများမှာ ရုံးဟို စွပ်စွဲခံရသူ(၅)ဦးသာပါဝင်ပါသည်။ ယခုကျွန်တော် ရုံးဟို၌ ထွက်ဆိုအစစ်ခံရာ ရုံးဟိုစွပ်စွဲခံရသူ (၅)ဦး အပြင် အခြားရွာမှ လူများလည်း ပါဝင်သည်ဟု မည်သည့် အတွက်ကြောင့် ထွက်ဆိုအစစ်ခံပါသလဲ ဆိုလျှင် ကျွန်တော် ယခုအမှုအား တရားစွဲဆိုရန် နီမြို့မှူးဦးဇော်သန်းနိုင် နန့်တိုင်ပင်ရာ ဦးဇော်သန်း နိုင်က ကျွန်တော်တိုင်တန်းရန် လူများမှာ (၂၈)ယောက်ဖြိုက်နီ၍ ၎င်းမှ ထိန်းသိမ်းရန် အခက်အခဲ အခြေအနေများကြောင့် ထိုလူများထဲမှ ခေါင်းဆောင်များဖြိုက်သည့် ရုံးဟိုစွပ်စွဲခံရသူ(၅)ဦးကိုသာ တရားစွဲဆိုရန် ကျွန်တော်နန့်တိုင်ပင် ပြောဆိုပြီး နောက်မှ တရားစွဲဆိုခရ ခြင်းဖြိုက်ပါ ကြောင်း၊ ယခု အမှုတွဲတွင် တင်ပြထားသည့် ကျွန်တော်ကိုယ်တိုင် အခင်းဖြိုက်ခိုင်ရိုက်ကူးထားသည့် မှတ်တမ်းဓာတ်ပုံ(၁၁)ပုံနန့်၊ အခင်းဖြိုက်ခိုင်က ရိုက်ကူးထားသည့် ဗီဒီယိုခိုင်ပိုင် SDကဒ်တစ်ခုကိုလည်း အမှုစစ်ထံ၌ ကျွန်တော် ကိုယ်တိုင်

အခွင့်ရအရာဟိ



ဒေသတရားသူကြီး

နိဗာ(၁) စစ်ဒေသ ၊ ဒေသတရားရုံး

Figure 3

တာဝန်ခံမိတ္တူမှန်
စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၄

အပ်ပီးခပါကြောင်း၊ အပ်ပီးသူ ဦးခင်မောင်လှ (ခ)ဦးတင်ဝေရှိရာ၌ ဇိုးထိုးထားသော လက်မှတ်မှာ ကျွန်တော်၏လက်မှတ်မှန်ကန်ပြီး သက်သိခံအဖြိုက်တင်ပြရာ သက်သိခံ “ခ” အဖြိုက်လက်ခံသည်။ ထိုရှာဖွေပုံစံဖြင့် သိမ်းဆည်းထားသည့် မှတ်တမ်းဓါတ်ပုံ (၁၁)ပုံအား သက်သိခံအဖြိုက်တင်ပြရာ သက်သိခံ “ဂ” မှ “ဂ-၁၀” အဖြိုက်ရုံးတော်မှ လက်ခံပါကြောင်း၊ ထိုရှာဖွေပုံစံပါ ဖ SD ကဒ်တစ်ကဒ်ကိုလည်း သက်သိခံအဖြိုက်တင်ပြရာ ရုံးတော်မှ သက်သိခံ “ဃ” အဖြိုက်လက်ခံကြောင်း စသည်ဖြင့် ထွက်ဆိုထားလေသည်။

ကိုထွန်းနိုင် (လိုပြ - ၂) မှ လွန်ခရေ (၃)နှစ်ခန့်၊ မိုးရာသီ ညဇာပိုင်း (၈/၉) နာရီခန့်တွင် တရားလိုပုဂ္ဂိုလ်တစ်ယောက် ကျွန်တော်၊ ကျွန်တော်အိမ်ရှင်မ ဒေါ်ဆန်းမင်းသိန်း နန်း (၁)နှစ်ခန့်ဟိသော သမီးရီနန်း ဟိန်စဉ် ရုံးကြီးစွပ်စွဲခံရသူ(၅)ဦးနန့် ဝကောက်ကြီးရွာသား(၃၅)ဦးရဲ့ လာရောက်သည်ကို ခြိမ်းခြောက်ရ၍ ကျွန်တော် အဝတ်လှယ်နီရာမှ တံပြင်းသို့ထွက်ကြည့်ကြောင်း၊ ကျွန်တော်တို့မှာ ရွာက လာလျှင် စတင်တို့ဟိသည့် တံဖြိုက်ပြီး ကျွန်တော်တံခေါင်းရင် မီးလောင်နီသည်ကို တွိရကြောင်း၊ ရုံးဟိစွပ်စွဲခံရသူ ဦးသန်းရွှေဆိုသူမှာ ကျွန်တော်တံရှေ့သို့ ရောက်ဟိလာပြီး ၎င်းတွင် ကိုင်လာသည့် ဓါးနန့်ရှယ်ပညာ မဆိုင်ဘဲနန့် ဝင်မရှုပ်ကေ ဟု ပြောကာ ကျွန်တော်အား ခုတ်ရာ ကျွန်တော်၏ဘယ်ဖက် လက်ဝါးစောင်းကို (၁-ချက်) ကျကြောင်း၊ ကျွန်တော်မှ ဦးသန်းရွှေအား တံမှ ကျွန်တော်အဝတ်အစားများကိုတံထဲမှ တစ်ခေါက်ယူလိုက်မေအုံး ဟု ပြောရာ ၎င်းမှ တစ်ခုလည်းမယူကေဟု ပြောကြောင်း၊ ကျွန်တော်မှာ တံထဲမှ ဇနီးနန့် သမီးအားခေါ်ကာ ပုစ္ဆိတာထဲတွင်ဟိသည့် လောင်းကြီးထဲသို့ ဆင်းပြီးကောင်း၊ လောင်းနန့်တစ်ဖက်ကမ်းသို့ လောင်းကိုတိုးကာ လားရကြောင်း ၊ ကုန်ဘောင်က ခြီးလျှင် ရုံးဟိစွပ်စွဲခံရသူများက ခွပ်မည်ဖြိုက်ကြောင်း၊ ရုံးဟိစွပ်စွဲခံရသူများက ကျွန်တော်နောက်မှ လိုက်မလာကြောင်း၊ ကျွန်တော်တို့မှာ ရုံးဟိစွပ်စွဲခံရသူများက မီးတိုက်၍ တံခေါင်းမီးလောင်လားကြောင်း၊ ဦးလှစိန်အောင်မှာ ကျွန်တော်တံထဲဝင်ကာ ပစ္စည်းများယူသည်ကို မြင်ရပါကြောင်း၊ ကျွန်တော်တံနန့် ကျွန်တော်ရောက်သည်နီရာမှာ ပေ(၃၀)ခန့်သာ ဝီပြီး ကြားတွင် ချောင်းတစ်ချောင်းသာ ဟိကြောင်း၊ ဦးလှစိန်အောင်မှ တန်ဖိုးဟိသည့်ပစ္စည်း များကို အားလုံးချယူဟုပြောဆိုပြီး မီးတိုက်လို့လောင်ဖို့ပစ္စည်းများကိုလည်း အားလုံးမီးတိုက်ဟု ပြောဆိုသည်ကို ကြားရကြောင်း၊ ကျွန်တော်တံကို မီးတိုက်ပြီးနောက် တခြားတံများကိုလည်း မီးတိုက်ကြပြီး ၎င်းရဲ့၏လက်ထဲတွင် ဓါး၊ လုံနန့် ဓါတ်ဆီဘူးများ၊ မီးတုတ်များလည်း ပါကြောင်း၊ တရားလို ဦးခင်မောင်လှ တံအဆုံးတွင်ဟိသည့် ဝက်ရံနားတွင်ဖုန်းပြောနီသည်ကို ဦးလှစိန်အောင်မှ ဓါးနန့်ခွပ်နီသည်ကို ကျွန်တော် ချောင်းတစ်ဖက်က မြင်ရကြောင်း ၊ တံအဆုံးနန့် ကျွန်တော်မှာ ပေ(၅၀)လောက် ဝီပြီး ဦးခင်မောင်လှ ဝက်ရံအောက်က ချောင်းထဲသို့ ဆင်းပြီးလားသည်ကို တွိရကြောင်း၊ တံများကို ဝီထားသည့် လျှပ်စစ်မီးမှာ ပြတ်တောက်လား၍ ကျွန်တော် ဆက်၍ မမြင်လိုက်ရတော့ကြောင်း၊ ဦးလှစိန်အောင်မှာ တံအနီးကာရီဘောင်မှနီ၍ တွိရလူကို အားလုံး ရှာလို့ သတ်၊ ငါ တာဝန်ယူရဟုလည်း ပြောဆိုနီကြောင်း၊ ကျွန်တော်မှာ ကြောက်၍လောင်းကိုတိုးကာ ပြင်ချောင်း ဖက်သို့ ထွက်ပြီးလာကြောင်း ထွက်ဆိုထားလေသည်။

တရားလိုပြသက်သီ ဦးကျော်သိန်းမှ ကျွန်တော်မှာ ဦးခင်မောင်လှပုစ္ဆိကွင်း၌ လုပ်ကိုင်နီသည်မှာ (၈)နှစ် ခန့်ဟိပြီး အခင်းဖြိုက်နီနီက ကျွန်တော်မိသားစုဝင်များနန့်အတူ တရားလို၏ ပုစ္ဆိကွင်းဟိ တံ၌ ဟိနီပါကြောင်း၊ တရားလို တံမှ ခွေးဟောင်သံကြားရ၍ ၎င်းတံသို့လားရာ တရားလိုမှာ ဝက်ရံနားတွဲရပြီး တံမှာလည်း မီးလောင် ကျွမ်းနီသည်ကို တွိရကြောင်း၊ ၎င်းအနီးအနားတွင် ရုံးဟိစွပ်စွဲခံရသူများလည်း မြင်ရပြီး ဦးခင်မောင်လှတံမှ သေတ္တာများကိုချကြောင်း၊ မင်းမင်းအောင်ဆိုသူနီထိုင်သည့် အဆောင်မီးလောင်နီသည်ကိုမြင်ရကြောင်း ၊ ကျွန်တော်မှာ တံတစ်ခု၌ အိပ်နီသော သားကိုလားနီးရာ တံ၌မအိပ်ဘဲ ရွာထဲတွင်အိပ်နီသည်ကို သိရ၍ ပြန်လာရာ ဦးခင်မောင်လှ နန့် ဝက်ရံနားတွင်တွိကြောင်း၊ ဦးခင်မောင်လှအား မီးတိုက်လာသူများက ဓါးဖြင့်ခွပ်ရန်လိုက်၍ ဦးခင်မောင်လှလည်း ထွက်ပြီး၍ ကျွန်တော်လည်း ထွက်ပြီးလာကြောင်း၊ ကျွန်တော်ဇနီးမယားအိပ်နီသည့် တံဖက် အခွင်ရအရာဟိ သို့ ခြီးလာရာ နောက်မှ လူ(၅)ဦးလိုက်ကြောင်း၊ ထိုသူရဲ့မှာ တံများကို မီးတိုက်ကြကြောင်း၊ကျွန်တော်မှာ ဇနီးနန့်


ဒေသတရားသူကြီး
နီတာ(၁) စစ်ဒေသ ၊ ဒေသတရားရုံး

Figure 4

စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၅

သားမယားကိုခေါ်ကာ ခန္ဓာကိုယ်တွင်ဝတ်ထားသည့် အဝတ်အစား များမှ လွဲ၍ မည်သည့်အရာမျှ မယူဆောင်ခဲ့ရကြောင်း၊ ကျွန်တော်နှင့် စနိုးသားမယားရဲ့ မှာ လောင်းစီး၍ ဝါး(၇/၈)ပြန်ခန့် ကနီ၍ မိမိတံဟီရာသို့ ပြန်၍ ကေရာ မီးလောင်နိုင်သည်ဖြစ်ရကြောင်း၊ ကျွန်တော်ရဲ့မှာ ချောင်းတစ်ဖက်ကမ်းမှ စီးပင်မှန်၍ ညဉ့် (၁၁)နာရီခန့်ထိ တံများမီးလောင်နိုင်သည်ကို ကြည့်နိုင်ရပြီး လောင်းထဲတွင် အိပ်နိုင်ရကြောင်း စသည်ဖြင့် ထွက်ဆိုထားလေသည်။

တရားလိုပြသက်သီ ဒေါ်မရွှေရီခိုင်မှ ကျွန်မမှာ တရားလိုဦးခင်မောင်လှ၏ ငါးခိုင်တွင် ငါးလုပ်ငန်းများလုပ်ကိုင်နိုင်သည်မှာ (၁၀)နှစ်ခန့် ဟိပြီးဖြစ်ကြောင်း၊ အခင်းဖြစ်နိုင်မှု ကျွန်မမှာ တံထဲ၌ video ကြည့်နိုင်စဉ် ရုံးဟိုစွပ်စွဲခံရသူ(၅)ဦးစလုံးမှာ ခါးလုံးခေါတ်ဆီများ ကိုယ်စီကိုင်ကာ ပုစွန်ကွင်းထဲဟိ တံပေါင်း(၁၀)ကျော်ကို မီးရှို့ကြကြောင်း၊ကျွန်မလည်းတံမှ နီ၍ ကြက်ရေကျွန်းသို့ ခြံကျွတ်ထွက်ပြီးကြောင်း၊ ကျွန်မမှာ မီးလောင်ရာတွင် ငွေ (၁၀)သိန်း နန့် ရွှေ (၁)ကျပ်ခွဲရဲ့လည်း ပါလားကြောင်း ထွက်ဆိုထားလေသည်။

တရားလိုပြသက်သီ အမှုစစ်မျိုးဝင်းကျော်မှ အမှုစစ်ရဲလုပ်ငန်းများကို ထွက်ဆိုပြီး ရှာဖွေပုံစံအား သက်သီခံ (ခ) အဖြစ်လည်းကောင်း၊ မြေပုံကြမ်းအား သက်သီခံ (ဂ) အဖြစ်လည်းကောင်း တင်ပြ၍ ရုံးတော်မှ လက်ခံသည်။

တရားလိုနှင့် လိုပြသက်သီများအား စစ်ဆီးပြီး တရားခံများကို ရာဇသတ်ကြီး ဥပဒေပုဒ်မ ၄၃၆ အရ စွဲချက်တင်ကာ တရားခံများအား စွဲချက်ကိုဖတ်ပြပြီး ရှင်းလင်းပြောကြားကာ တရားခံများအား အပြစ်ရှိမရှိ မီးမြှန်၍ တရားခံများက အပြစ်မဟိကြောင်းပြောဆိုသည်။

ထွန်းမောင်သာ (ခံပြ - ဝ) မှ တရားလိုအားကောင်းစွာသိဟိပြီး ရန်ငြိုးရန်စ မရှိပါကြောင်း လွန်ခဲ့သော ၂၀၂၀ ခုနှစ် ၊ ဇွန်လ ညနီဖက် ၉ နာရီခန့်အချိန်နီနီတနီနီက ကျတော်မှာ မိမိအိမ်၌ ဟိနီစဉ် မီးညွှန့်များ တက်လာသည်ကို မြင်၍ ထိုနီရာသို့ လားကြည့်ရာ လမ်းတဝိုင်းမှ ပြန်လာကြောင်း ကျတော်မှာ မီးရှို့ရာတွင် ပါဝင်သူမဟုတ်ဘဲ တရားလိုမှ ရွာလူကြီးဖြစ်သည်ကို အကြောင်းပြု၍ ကျတော်အား တရားစွဲဆိုခြင်းဖြစ်ကြောင်း ထွက်ဆိုသည်။

သန်းရွှေ (ခံပြ - ၂) မှ လွန်ခဲ့သော ၂၀၂၀ ခုနှစ် ဇွန်လ ညနီ ၉ နာရီခန့်တွင် ကျတော် နီအိမ်၌ ဟိနီစဉ် မီးညွှန့်များတက်လာသည်ကို မြင်၍ ထိုနီရာသို့ လားကြည့်ရာ ထိုနီရာသို့မရောက်ရှိဘဲ လမ်းတဝိုင်းမှ ပြန်လှည့်လာပါကြောင်း ကျတော်အနီဖြင့် မီးရှို့ရာတွင်လည်း ပါဝင်သူတစ်ဦးမဟုတ်ခဲ့ကြောင်း ထွက်ဆိုသည်။

မောင်လှစိန် (ခံပြ - ၃) မှ လွန်ခဲ့သော ၂၀၂၀ ခုနှစ်၊ နီနီတနီနီက ကျွန်တော်ကျေးရွာတွင်ဟိမနီခဲဘဲ အခင်းဖြစ်နီရာနှင့် နာရီဝက်ခန့် လမ်းလျှောက်လားရသည့် လယ်တာတမံ၌ ရေအဝင်အထွက် ရေခေါင်း ပြုလုပ်လျက်ရှိကြောင်း၊ ထိုသို့ပြုလုပ်နီစဉ် ကျွန်တော်နှင့်အတူ ဦးလှစိန်အောင်၊ ဦးနိုင်နိုင်၊ ဦးမောင်ကြီးယေ တို့လည်း အတူဟိပါကြောင်း၊ တရားလိုမှ ကျေးရွာလယ်သမားပိုင်လယ်များကို လုယူထားသည်ဟုဆိုရာတွင်လည်း ကျွန်တော်၏ လယ်မပါရှိပါကြောင်း၊ ကျွန်တော်မှာ မမှန်မကန် စွပ်စွဲခံရကြောင်း ထွက်ဆိုသည်။

လှစိန်အောင် (ခံပြ - ၄) မှ လွန်ခဲ့သော ၂၀၂၀ ခုနှစ် နီနီတနီနီတွင် ကျွန်တော်မှာ ကျေးရွာအတွင်း ဟိမနီဘဲ အခင်းဖြစ်နီရာနှင့် နာရီဝက်ခန့် လမ်းလျှောက်လားရသည့် လယ်တာတမံ၌ ရေအဝင်အထွက် ရေခေါင်း ပြုလုပ်နီပါကြောင်း၊ ထိုစဉ် ဦးမောင်လှစိန်၊ ဦးနိုင်နိုင်၊ ဦးမောင်ကြီးယေ တို့လည်းအတူဟိကြောင်း ၊ အခင်းဖြစ်ပွားသည့် လယ်ယာမြေထဲတွင်လည်း ကျွန်တော်၏ လယ်မပါဟိပါကြောင်း၊ အခင်းဖြစ်ကိစ္စနှင့် ပတ်သတ်၍ နီဗာ (ဝ) စစ်ဒေသသို့ တိုင်ကြားသည့်အခါတွင်လည်း ကျွန်တော်ပါဝင်ခြင်းမဟိကြောင်း၊ တစ်နှစ်ကျော်ကြာပြီးမှ ယခုခုသို့ တရားစွဲဆိုခြင်းဖြစ်ကြောင်း ကျွန်တော်မှာ အပြစ် ပြုလုပ်ထားသူမဟုတ်၍ အပြစ်မဟိကြောင်း ထွက်ဆိုသည်။

အခွင့်ရအရာဟိ

ဒေသတရားသူကြီး
နီဗာ(၁) စစ်ဒေသ၊ ဒေသတရားရုံး

Figure 5

တာဝန်ခံမိတ္တူမှန်
စစ်ဆေးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၆

ကျော်စိန်နု (ခံပြ - ၅) မှ လွန်ခဲ့သော ၂၀၂၀ ခုနှစ် နိုဝင်ဘာလ၊ ကျွန်တော်အိမ်၌ ဟိန္ဒူစဉ် မီးလောင်သည်ဟု ကြားသိရပါကြောင်း၊ တရားလိုမှ နီဗာ (၁) စစ်ဒေသတွင် တိုင်ကြားစဉ်ကလည်း ကျွန်တော် ပါဝင်ခြင်းမဟုတ်ကြောင်း၊ ယခုအမှုနှင့်ပတ်သတ်၍ ကျွန်တော်မှာ အပြစ်ပြုလုပ်သူမဟုတ်၍ အပြစ်မဟုတ် ကြောင်း ထွက်ဆိုသည်။

သိန်းယုဇ်နု (ခံပြ - ၆) မှ အခင်းဖြစ်ပွားသည့်နိမ့်က မီးလောင်သည့်နီရာသို့ လားရောက်ခဲ့ရာ လမ်းတဝိုင်းမှ ပြန်လှည့်လာပြီး ထိုသို့လာရာတွင် ဦးထွန်းမောင်သာနှင့် ဦးသန်းရွှေတို့ကိုလည်း လမ်းတွင် တွဲဖက် ခဲ့ကြောင်းထွက်ဆိုသည်။

နိုင်နိုင် (ခံပြ - ၇) မှ အခင်းဖြစ်ပွားသည့်နိမ့်က ကျွန်တော်အပါဝင် ဦးလှစိန်အောင်၊ ဦးလှမောင်စိန်၊ ဦးမောင်ကြီးယုဇ် တို့မှာ ဝက်ကောက်ကြီးကျေးရွာ၏ တောင်ဘက်တွင်ရှိသော လယ်ကားရီတွင် ရေခေါင်း ပြုလုပ် လျှက် ဟိန္ဒူကြီး နံနက်မိုးလင်းသည့်အခါမှ အခင်းဖြစ်ပွားမှုကို သိရှိရကြောင်း ထွက်ဆိုသည်။

မောင်သန်းနိုင် (ခံပြ - ၈) မှ အခင်းဖြစ်ပွားသည့်နိမ့်၊ ည ၈ နာရီခန့်က ရွာထဲတွင် မီးလောင်သည်ဆို၍ ကျွန်တော်လားကြည့်ခဲ့ပါကြောင်း၊ အခင်းဖြစ်နေရာသို့ မရောက်ရှိပါကြောင်း၊ မီးလောင်သည်ဆိုသောအချိန်က ကျတော်သည် ဦးကျော်စိန်နှင့်အတူ ရွာတွင်ရှိနေသည့်ဆိုကြောင်း ထွက်ဆိုသည်။

ဤအမှုတွင် တရားလို၏ ပုစ္ဆာကန်၌ဟိသော လုပ်ငန်းခွင်အဆောက်အအုံများနှင့် လူနီသည့် အဆောင် များကို မီးရှို့ဖျက်ဆီးလားကြောင်း တရားလိုမှ လူသက်သ်ထွက်ဆိုချက်များနှင့်အတူ မှတ်တမ်းဓာတ်ပုံ များ ကိုလည်း တင်ပြထား၍ ထိုမှတ်တမ်းဓာတ်ပုံများအရ တရားလိုပိုင်အဆောက်အအုံများကို မီးရှို့ဖျက်ဆီးလား ခဲ့ကြသည်မှာ မှန်ကန်ကြောင်း ထင်ရှားလေသည်။ တရားလိုဘက်မှ တင်ပြသော သက်သ်များကလည်း ထိုသို့ မီးရှို့သည်မှာ တရားခံများသာဖြစ်ကြပြီး ၎င်းတို့ကိုယ်တိုင် တွဲဖက်သိရှိ လိုက်ကြကြောင်း ထွက်ဆို ခဲ့ကြပေသည်။ တရားခံပြသက်သ်များကိုယ်တိုင် အခင်းဖြစ်ပွားသည့်နိမ့်က အသက်လု၍ ထွက်ပြေးခဲ့ရကြောင်း ထွက်ဆို ထား ကြလေသည်။

တရားခံများမှ တရားလို၏ အဆောက်အအုံများအား မီးရှို့ဖျက်ဆီးခဲ့ခြင်းမဟုတ် ဆိုကြသော်လည်း ခိုင်မာစွာ သက်သ်တင်ပြနိုင်ခြင်းမရှိသည်ကို တွိရှိရလေသည်။ တရားလို၏ လယ်ပုစ္ဆာကန်မှာ တရားခံများ ပိုင်ဆိုင်သည့် လယ်ယာမြေကို အတမ လုယူထားသည်ဟုဆိုပြီး တရားလိုအပေါ် တရားခံများမှ မကျေနပ်သည့် စိတ်ထားများ ဟိန္ဒူကြီးကြောင်း တွိရပေသည်။ တရားခံများသည် တရားလိုမှ လုပ်ကိုင်စားသောက်နီသည်ကို မကျေနပ်၍ ထိုနီရာမှ ထွက်လားစိလိုသော စိတ်ဆန္ဒဖြင့် တရားလိုပိုင်ဆိုင်သည့်အဆောက်အအုံများကို လားရောက် မီးရှို့ခဲ့သည်ဟု အမှုတွင် တွိရပေသည်။ တရားလိုခွဲဆိုသည့်အမှုမှာ ခိုင်မာမှုရှိသည့်အတွက်ကြောင်း တရားခံ များအား ရာဇသတ်ကြီးပုဒ်မ - ၄၃၆ အရ အပြစ်ပေးရန်သာဟိပေသည်။

ရာဇသတ်ကြီး ၃၀၃ပုဒ်မ ၄၃၆ တွင် မည်သူမဆို ကိုးကွယ်ဝတ် ပြုသောနေရာအဖြစ်ဖြင့်လည်ကောင်း၊ အိမ်အဖြစ်ဖြင့်လည်ကောင်း ပစ္စည်းများသိုလှောင် ထိန်းသိမ်း ထားသော နေရာအဖြစ်ဖြင့်လည်ကောင်း၊ သာမန် အားဖြင့်အသုံးပြုသော အဆောက်အအုံကို ဖျက်ဆီးရန်အကြံဖြင့်ဖြစ်စေ၊ မိမိက ထိုသို့ဖျက်ဆီးစေတန်ရာသည်ကို သိလျက်နှင့်ဖြစ်စေ၊ မီးဖြင့်၊ သို့တည်းမဟုတ် ပေါက်ကွဲတတ်သောအရာဖြင့်အကျိုးဖျက်ဆီးမှုကို ကျူးလွန်လျှင် ထိုသူကို ထောင်ဒဏ် အနှစ်နှစ်ဆယ်ဖြစ်စေ၊ ဆယ်နှစ်ထိ ထောင်ဒဏ်တစ်မျိုးမျိုးဖြစ်စေ ချမှတ်ရမည်အပြင် ငွေဒဏ်လည်းချမှတ်နိုင်သည်ဟု ပြဌာန်းထားလေသည်။

ဖြစ်ဒဏ်နှင့်ပတ်သတ်၍ တရားခံများသည် လယ်ယာလုပ်ငန်းလုပ်ကိုင်သည့် လယ်သမားများဖြစ်ကြခြင်း၊ အခွင့်ရအရာဟိ ယခင်က ပြစ်ဒဏ်ကျခံဖူးခြင်းမဟုတ်ခြင်း၊ တရားခံအချို့မှာ အသက်အရွယ်အားဖြင့် ကြီးရင့်သည့်တို့ကို ထောက်


ဒေသတရားသူကြီး
နီဗာ(၁) စစ်ဒေသ၊ ဒေသတရားရုံး

Figure 6

တာဝန်ခံမိတ္တူမှန်
စစ်ဆီးပြီးမှန်ကန်ကြောင်း တာဝန်ယူသည်။

ရာဇဝတ်ကြီးအမှု အမှတ် -၁၄ / ၂၀၂၃၊ အဆက် - ၇

ရှု၍ လျော့ပေါ့စိုင်းစားသင့်သည်ဟု တွိမြင်မိပေသည်။ ထို့ကြောင့် တရားခံရိုအပေါ် အောက်ပါ အမိန့်အား ချမှတ်သည်။

အမိန့်

မြေပုံမြို့နယ် ဝကောက်ကြီးကျေးရွာနိန့် (ဘ) ဦးဆိတ်ချေ၏ သား (ဝ) တရားခံ ထွန်းမောင်သာ အား ရာဇသတ်ကြီးဥပဒေ ပုဒ်မ - ၄၃၆ အရ ထောင်ဒဏ် (၂ - နှစ်) (နှစ် နှစ်) တိတိ ကျခံစီ။ (၈.၁၁.၂၀၂၂) ရက်နိန့်မှ (၅.၄.၂၀၂၄) ရက်နိန့်အထိ ချုပ်ရက်များအား ထုတ်နုတ်ခံစားစီ ။ တစ်ရွာတည်းနီ (ဘ) ဦးမောင်ကြာထွန်း၏ သား (၂) တရားခံ လှစိန်အောင် အား ရာဇသတ်ကြီးဥပဒေ ပုဒ်မ - ၄၃၆ အရ ထောင်ဒဏ် (၂ - နှစ်) (နှစ် နှစ်) တိတိ ကျခံစီ။ (၈.၁၁.၂၀၂၂) ရက်နိန့်မှ (၅.၄.၂၀၂၄) ရက်နိန့်အထိ ချုပ်ရက်များအား ထုတ်နုတ်ခံစားစီ ။ တစ်ရွာတည်းနီ (ဘ) ဦးကျော်လှဦး၏ သား (၃) တရားခံ ကျော်စိန်နု အား ရာဇသတ်ကြီးဥပဒေ ပုဒ်မ - ၄၃၆ အရ ထောင်ဒဏ် (၂ - နှစ်) (နှစ် နှစ်) တိတိ ကျခံစီ။ (၁၀.၁၁.၂၀၂၂) ရက်နိန့်မှ (၅.၄.၂၀၂၄) ရက်နိန့်ထိ ချုပ်ရက်များအား ထုတ်နုတ်ခံစားစီ ။ တစ်ရွာတည်းနီ(ဘ) ဦးနားကာချေ၏ သား (၄) တရားခံ လှမောင်စိန် အား ရာဇသတ်ကြီး ဥပဒေ ပုဒ်မ - ၄၃၆ အရ ထောင်ဒဏ် (၂ - နှစ်) (နှစ် နှစ်) တိတိ ကျခံစီ။ (၈.၁၁.၂၀၂၂) ရက်နိန့်မှ (၅.၄.၂၀၂၄) ရက်နိန့်ထိ ချုပ်ရက်များအား ထုတ်နုတ်ခံစားစီ ။ တစ်ရွာတည်းနီ (ဘ) ဦးကျော်လှဦး၏ သား (၅) တရားခံ သန်းရွှေ အား ရာဇသတ်ကြီး ဥပဒေပုဒ်မ - ၄၃၆ အရ ထောင်ဒဏ် (၂ - နှစ်) (နှစ် နှစ်) တိတိ ကျခံစီ။ (၂.၂.၂၀၂၃) ရက်နိန့်မှ (၅.၄.၂၀၂၄) ရက်နိန့်ထိ ချုပ်ရက်များအား ထုတ်နုတ်ခံစားစီ။

အခွင့်ရအရာဟိ



ဒေသတရားသူကြီး

နီဗာ(၁)စစ်ဒေသ၊ ဒေသတရားရုံး

ပုံ

× × ×

လင်းအောင်ဝေ

ဒေသတရားသူကြီး

နီဗာ(၁)စစ်ဒေသ၊ ဒေသတရားရုံး

Figure 7

Transcription

Arakha People's Government

Judiciary Department

In the Regional Court of Nova (1) Military Region

2023, Criminal Case No. 14

April 5, 2024

U Khin Maung Hla (a.k.a.) U Tin Wai - *(Complainant / Prosecution)*

VS

**Tun Maung Tha, Hla Sein Aung, Kyaw Sein Nu, Hla Maung Sein, Than Shwe-
*(Defendants / Accused)***

Authorized Official

[Signature]

Regional Judge

Nova (1) Military Region Court

For the Prosecution/Complainant: Daw Aung Mary (Regional Law Officer)

For the Defendants: U Han Min Hlaing (Advocate / High Court Lawyer)

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Charge under Section 436 of the Penal Code

(Note: Section 436 of the Penal Code pertains to "Mischief by fire or explosive substance with intent to destroy a house, etc.")

Judgment

This case arose from a complaint filed seeking legal action against **Htun Maung Tha, Hla Sein Aung, Kyaw Sein Nu, Hla Maung Sein, and Than Shwe**, who were alleged to have burned and destroyed **11 huts owned by the plaintiff, U Khin Maung Hla, also known as U Tin Wai, together with the property contained in those huts and one fiberglass boat.**

The case concerns the plaintiff, who had been operating a field known as **Plot No. (18-B), Kyi-Sa-Toung Field**, located near Wakaunggyi Village in Myebon Township, as a prawn farm for approximately **13 years**. At approximately **8:30 p.m. on June 15, 2020**, U Htun Maung Tha, a resident of Wakaunggyi Village, allegedly led a group consisting of **U Hla Sein Aung, U Kyaw Sein Nu, U Hla Maung Sein, and U Than Shwe**.

It was alleged that they burned and completely destroyed **11 huts belonging to the plaintiff**, located on Plot No. (18-B), Kyi-Sa-Toung Field, together with **one fiberglass boat and all property contained inside the huts**. The incident was allegedly witnessed by the plaintiff and his workers, namely **Kyaw Thein, Kyaw San Hlaing, and Ma Shwe Khaing**.

As a result of the destruction by fire, the plaintiff allegedly suffered losses with an estimated total value of approximately **75.2 million kyats**.

Accordingly, this case arose from the complaint seeking legal action against **Htun Maung Tha, Hla Sein Aung, Kyaw Sein Nu, Hla Maung Sein, and Than Shwe**, all residents of Wakaunggyi Village, Myebon Township, for allegedly burning and destroying the plaintiff's **11 huts, one fiberglass boat, and all property contained therein**.

During the trial, the Court examined **U Khin Maung Hla, Htun Naing, U Kyaw Thein Hla, and Ma Shwe Khaing** as the plaintiff and prosecution witnesses.

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Testimony of U Khin Maung Hla (Plaintiff's Witness)

“On June 15, 2020, at approximately 8:30 p.m., while I was talking on the telephone inside my hut located at the prawn farm in Wakaunggyi Village, approximately 23 villagers, together with the five accused persons currently present before the Court, approached from the direction of their village.

They first arrived at the hut of my younger brother, Kyaw San Hlaing, also known as Tun Hlaing, which was located within the prawn farm. U Than Shwe cut the posts of the hut with a knife. Subsequently, Aung Naing Soe, the nephew of U Hla Sein Aung, threw a coil of oil-soaked rope that he had brought with him onto the roof of the hut.

They then proceeded toward my hut, which was approximately 20 feet away from my brother's hut. I was sitting in the open area in front of my hut and talking on the telephone. At that time, Maung Than Htay and Than Shwe approached me and attacked me with the knives they were carrying. When Maung Than Shwe attempted to cut me, I managed to protect myself by taking a piece of firewood from a nearby pile and using it as a shield. Maung Than Shwe attacked me again, and I was struck twice on my left arm. I then fled from the area.

At that point, Htun Maung Tha shouted to the other people, ‘Do not let this man escape.’ I hid underneath the pigsty located in front of my hut. While I was hiding there, I heard U Kyaw Sein Nu shouting, ‘Go and get the petrol container from U Hla Sein Aung.’

Subsequently, U La Phyu Chay and U Kyaw Sein Nu entered my hut and poured petrol inside it. I was able to see them pouring the petrol while I was hiding underneath the pigsty. My hut and the pigsty where I was hiding were separated by an embankment approximately 10 feet wide and 6 feet high.

Afterwards, the accused persons and the other people who had accompanied them climbed onto the roof of my hut. They brought down a box containing a gold brooch weighing approximately five Mu (8.15g), a gold ring weighing approximately one Kyattha (16.33 g), and approximately 2,000,000 kyats in cash. They broke open the lock on the box using the knives they had brought with them and took all the property inside. They then threw the box outside the prawn farm.

After that, all of those people surrounded my hut and set it on fire. My employees, who were living approximately 500 yards away, saw the hut burning. Believing that the fire had been accidentally caused, they ran toward the scene. They were Maung Than Htay and U Khin Maung. While they were approaching, the people who had set the fire shot at them with slingshots, and one of the shots struck Min Naing in the chest.

Min Naing's wife, Ma Soe Than, and their seven-year-old son were also present at the scene. Ma Soe Than pleaded with Maung Than Htay and U Khin Maung, who had been shooting at her husband, saying, ‘Please do not shoot my husband with the slingshot. Please spare his life.’

Afterwards, U Khin Maung and Maung Than Htay searched the huts where my workers were staying. At that time, La Phyu Chay and Nga May Chay climbed onto the hut next to mine, belonging to Ma Shwe Khaing, and prepared to set it on fire using petrol. Ma Shwe Khaing pleaded with them, asking for permission to take her belongings down from the hut.

They threatened her by saying, 'Do you want to be raped?' The two men then began setting Ma Shwe Khaing's hut on fire. There were also ten chickens being raised at Ma Shwe Khaing's hut. Maung Kyaw Thein and Maung Aye Thein, who were among those participating in the arson, caught the chickens alive and took them away.

I remained hidden underneath the pigsty and watched the people setting the huts on fire for approximately 20 minutes. As the others were also searching for me, I became increasingly frightened. I crawled out from underneath the pigsty and ran down into a ditch.

From there, I swam for approximately five hours to the Mo Chaung Chay jetty. At the jetty, I went to a person named Maung Maung Soe, to whom I regularly delivered prawns, and asked him for assistance. From the jetty, I contacted my family by telephone and asked for their help.

The group of persons accused of committing the crimes who are currently before the Court completely burned and destroyed 13 huts, one fiberglass boat, one generator, one prawn-drying machine, five outboard motors, approximately 20,000 pieces of firewood piled in front of the huts, approximately 500 bags of charcoal, and all other property.

I was informed that the gold and cash taken from my hut were divided among the perpetrators at the house of Maung Maung Kyaw in Wa-Kaukgyi Village.

Approximately seven days after the incident, I filed a complaint with U Khine Htoo, a ULA official, requesting that legal action be taken against the 28 people who had participated in the arson, including the accused persons currently before the Court.

Five days after filing that complaint, I used my Telegram account to submit a complaint to the AA headquarters addressed to AA Commander-in-Chief General Tun Myat Naing. Approximately one week after submitting that complaint, on June 22, Colonel Daung Yan summoned me and six of the persons who had participated in the arson, including the accused persons currently before the Court, to the Nova (1) Military Regional Office.

Colonel Daung Yan told us that he would clarify and resolve the matter concerning my complaint in April 2021. He then released me and the accused persons currently before the Court separately to return to our respective homes.

The persons currently before the Court who are accused of committing the offences, together with the other participants, burned and destroyed my entire prawn farm and all of the huts belonging to me. The total value of all property lost as a result of the arson was approximately 75.2 million kyats.

I respectfully request that legal action be taken against the accused persons currently before the Court and all other persons who participated in the arson.

This group of people had always been hostile toward me.

I acknowledge before the Court that the signature and fingerprint appearing on the first complaint, in the name of U Khin Maung Hla, also known as U Tin Wai, are genuinely mine.

I personally read the complaint included in the case file. Although I had complained against the five persons currently before the Court as well as other perpetrators who had participated in the incident, it raises the question of why only these five persons are being tried before the Court while the others are not.

When I consulted Area Commander U Zaw Than Naing about prosecuting this case, U Zaw Than Naing advised that, because the total number of people against whom I had complained was 28 and there were difficulties in detaining all of them, only the five persons among them who were considered the leaders—the five accused persons currently before the Court—should be prosecuted. Therefore, only these five persons were prosecuted before the Court based on the recommendation of Area Commander U Zaw Than Naing.

I personally submitted to the case investigator 11 documentary photographs that I had taken of the incident, together with one SD card containing video footage recorded during the incident. The signature appearing in the section for the person who submitted the materials, in the name of U Khin Maung Hla, also known as U Tin Wai, is my genuine signature.

When the search form and the 11 documentary photographs that had been prepared and preserved were submitted as evidence, the Court admitted them as Exhibits ‘C’ to ‘C-10’. The SD card referred to in the search form was also submitted as evidence, and the Court admitted it as Exhibit ‘D’.

Testimony of Ko Tun Naing (Prosecution Witness)

“Approximately three years ago, during the rainy season, at around 8:00 or 9:00 p.m., I was staying at the plaintiff’s prawn farm together with my wife, Daw San Min Thein, and our one-year-old daughter. While we were there, I heard the sound of footsteps and saw approximately 35 villagers from Wakaunggyi Village arriving together with the five accused persons who are now present before this Court.

At the time, I was hanging clothes. I went outside the hut to see what was happening. My hut was the first hut encountered when coming from the village. I saw that the roof of my hut had caught fire.

One of the accused persons present before the Court, U Than Shwe, came in front of my hut. He pointed the knife he was carrying at me and said, ‘If it does not concern you, do not interfere.’ He then attacked me with the knife, causing one cut injury to the side of my left palm.

I pleaded with U Than Shwe to allow me to take my clothes and belongings from inside the hut, but he told me, ‘Do not take anything.’

I then took my wife and daughter out of the hut and went down to a large boat that was in the prawn farm. We pushed the boat toward the opposite bank and fled. The accused persons threatened that if I tried to escape by running along the embankment, they would cut me with knives.

No one followed me after that. I could see that the roof of the hut where I had been living was burning. I also saw U Hla Sein Aung taking belongings out of my hut. My hut was only about 30 feet from the place where I was staying, with only a stream separating the two locations.

I heard U Hla Sein Aung say, ‘Take all the valuable belongings,’ and also say, ‘Burn everything that can be burned.’

After setting my hut on fire, they proceeded to set fire to the huts belonging to the plaintiff. They were carrying knives, spears, and containers of petrol.

I saw the plaintiff, U Khin Maung Hla, hiding near the pigsty at the far end of the huts. From the opposite side of the stream, I saw U Hla Sein Aung attacking U Khin Maung Hla with a knife. I was approximately 50 feet away from the end of the huts. I also saw U Khin Maung Hla run down from underneath the pigsty into the stream.

The electricity supplying the huts was then cut off, so I could no longer see what was happening.

U Hla Sein Aung was shouting from the embankment, saying that he would search for and kill anyone he saw and that he would take responsibility for it. Out of fear, I pushed the boat away and fled toward Pyin Chaung Village.”

Testimony of Prosecution Witness U Kyaw Thein

“I had been working at U Khin Maung Hla’s prawn farm for approximately eight years. On the day of the incident, I was staying with my family at a hut located within the plaintiff’s prawn-farming compound.

After hearing dogs barking from U Khin Maung Hla’s hut, I went toward his hut. I found U Khin Maung Hla hiding near the pigsty, while his hut was on fire. I also saw the accused persons in the vicinity. They were carrying boxes out of U Khin Maung Hla’s hut. I also saw the hut occupied by a person named Min Min Aung on fire.

I then searched for my son, who I believed was sleeping in one of the huts. However, my son was not there. I later learned that he had gone to the village. While returning from searching for him, I saw U Khin Maung Hla hiding near the pigsty. I learned that the persons who had set the huts on fire had chased U Khin Maung Hla with knives, forcing him to flee. I also had to flee from the area.

I ran toward the hut where my wife was staying, and five men followed me. Those five men set the huts on fire. I took my wife and son and fled with nothing except the clothes we were wearing.

My wife and son then travelled by boat back toward our own hut, which was approximately seven or eight bamboo-lengths away. We saw that our hut was also on fire. We crossed to the opposite bank of the stream and stayed there. From a large jujube tree, we could see the huts continuing to burn until approximately 11:00 p.m.

We spent the entire night in the boat.”

Testimony of Daw Ma Shwe Yi Khaing (Prosecution Witness)

“I had been working in the fishing business at the fish depot owned by the plaintiff, U Khin Maung Hla, for approximately 10 years. On the day of the incident, I was inside the hut watching a video.

The five accused persons currently present before the Court were each carrying knives, spears, and containers of petrol. They set fire to more than 10 huts located within the prawn farm. I remained inside the hut in fear. As I became extremely frightened and no longer dared to stay in the hut, I fled on foot toward Kyet Yain Island.

As a result of the arson, I lost **1,000,000 kyats in cash and approximately 1.5 kyatthas of gold.**

Note: One kyattha of gold is approximately **16.33 grams.**”

Testimony of the Investigating Officer Myo Win Kyaw (Prosecution Witness)

The investigating officer testified regarding the police investigation procedures. He submitted the **search form and inventory as Exhibit “B”** and the **sketch map as Exhibit “C”**, both of which were admitted into evidence by the Court.

After examining the plaintiff and the prosecution witnesses, the accused persons were **charged under Section 436 of the Penal Code**. The charge was read and explained to the accused persons, and they were asked whether they pleaded guilty or not guilty. The accused persons **pleaded not guilty**.

Testimonies of Defense Witnesses

Testimony of Htun Maung Tha (Defense Witness No. 1)

“I know the plaintiff well. I have no personal grudge or dispute with him. At approximately 9:00 p.m. on a night in June 2020, I was at my home when I saw flames rising. I went out intending to go and see what had happened, but I turned back while I was still on the way.

I testify that I did not participate in setting the fire. I believe that the plaintiff filed this case against me because I was the village headman at that time.”

Testimony of Than Shwe (Defense Witness No. 2)

“At approximately 9:00 p.m. in June 2020, I was at my home. I saw flames rising because there was a fire, so I went to see what had happened. However, I did not reach the scene and turned back while I was on the way.

I testify that I did not participate in setting the fire.”

Testimony of Maung Hla Sein (Defense Witness No. 3)

“On the day of the incident in 2020, I was in the village where I lived. It would take approximately 30 minutes to walk from my location to the scene of the incident. I was working on an irrigation inlet and outlet at the field embankment.

At that time, U Hla Sein Aung, U Naing Naing, and U Maung Gyi Nge were also with me.

Although it was alleged that the plaintiff had seized farmland belonging to villagers, my own farmland was not included among the land allegedly seized. I testify that I have merely been falsely accused.”

Testimony of Hla Sein Aung (Defense Witness No. 4)

“On the day of the incident in 2020, I was not in the village. I was working on an irrigation inlet and outlet at the field embankment, which was approximately a 30-minute walk from the scene of the incident. At that time, U Maung Hla Sein, U Naing Naing, and U Maung Gyi Nge were also with me.

My farmland was not included in the agricultural land where the incident occurred. I also did not participate when the complaint concerning the incident was submitted to the Nova (1) Military Region.

I was prosecuted only after more than one year had passed. I testify that I did not commit the offence and that I am not guilty.”

Testimony of Kyaw Sein Nu (Defense Witness No. 5)

“On the day of the incident in 2020, I was at my home when I heard that a fire had broken out in the village.

I did not participate when the plaintiff submitted his complaint to the Nova (1) Military Region. I testify that I did not commit the offence in this case and therefore I am not guilty.”

Testimony of Thein Yaing Nu (Defense Witness No. 6)

“On the day of the incident, I went toward the place where the fire had occurred but turned back while I was on the way. While returning, I met U Htun Maung Tha and U Than Shwe on the road.”

Testimony of Naing Naing (Defense Witness No. 7)

“On the day of the incident, I, together with U Hla Sein Aung, U Hla Maung Sein, and U Maung Gyi Paing, was working on an irrigation and drainage ditch at the field embankment south of Wakaunggyi Village.

I was not present at the scene of the incident. I only learned about what had happened after daybreak the following morning.”

Testimony of Maung Than Khaing (Defense Witness No. 8)

“At approximately 8:00 p.m. on the night of the incident, I heard that there was a fire in the village, so I went to see what had happened.

I did not reach the scene of the incident. At the time when the fire was said to have occurred, I was in the village together with U Kyaw Sein Nu.”

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Findings of the Court

In this case, the plaintiff presented both **witness testimony and documentary photographs** showing that the buildings used for business operations and the residential huts located within the plaintiff's prawn farm had been burned and destroyed. The photographs submitted as documentary evidence also demonstrate that the plaintiff's buildings were indeed burned and destroyed.

The witnesses presented by the plaintiff testified that they **personally saw and recognized the accused persons as the individuals who set the fires**. The defense witnesses themselves also testified that, on the day of the incident, they had to flee for their lives.

Although the accused persons denied that they had burned or destroyed the plaintiff's buildings, it is found that they **failed to present sufficient and credible evidence** to substantiate their denial.

It is further found from the evidence in this case that the accused persons harbored grievances against the plaintiff, alleging that the plaintiff had **wrongfully seized farmland belonging to the accused persons** and operated the plaintiff's farm on that land. The accused persons were dissatisfied with the plaintiff's continued operation of the farm and intended to drive him away from the area. It is therefore found that they went to the plaintiff's property and **set fire to and destroyed the buildings belonging to him for that purpose**.

As the case brought by the plaintiff is supported by sufficient and convincing evidence, the accused persons are therefore liable to be punished under **Section 436 of the Penal Code**.

Section 436 of the Penal Code

Section 436 of the Penal Code provides that:

“Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship, or as a human dwelling, or as a place for the custody of property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to a fine.”

Consideration of Sentence

With regard to the sentence, the Court considers that the accused persons are **farmers engaged in agricultural work**, that they have **no previous criminal convictions**, and that some of them are **elderly**. These circumstances should therefore be taken into consideration as mitigating factors.

Accordingly, the following order is passed against the accused persons. [Back to Content](#)

Order

(1) Accused Htun Maung Thar, son of U Seit Chay, from Taung Kan Gyi Village, Myebon Township, was sentenced under **Section 436 of the Penal Code** to **exactly two (2) years' imprisonment**, with the period of detention from **8 November 2022 to 5 April 2024** to be deducted from the sentence.

(2) Accused Hla Sein Aung, son of U Maung Kya Tun, residing in the same village, was sentenced under **Section 436 of the Penal Code** to **exactly two (2) years' imprisonment**, with the period of detention from **8 November 2022 to 5 April 2024** to be deducted from the sentence.

(3) Accused Kyaw Sein Nu, son of U Kyaw Hla Oo, residing in the same village, was sentenced under **Section 436 of the Penal Code** to **exactly two (2) years' imprisonment**, with the period of detention from **10 November 2022 to 5 April 2024** to be deducted from the sentence.

(4) Accused Hla Maung Sein, son of U Nar Kar Chay, residing in the same village, was sentenced under **Section 436 of the Penal Code** to **exactly two (2) years' imprisonment**, with the period of detention from **8 November 2022 to 5 April 2024** to be deducted from the sentence.

(5) Accused Than Shwe, son of U Kyaw Hla Oo, residing in the same village, was sentenced under **Section 436 of the Penal Code** to **exactly two (2) years' imprisonment**, with the period of detention from **2 February 2023 to 5 April 2024** to be deducted from the sentence.

Authorized Officer

(Signature)

Local Judge

Nova (1) Military Region, Local Court

[Seal/Stamp]

Lin Aung Wai

Local Judge

Nova (1) Military Region, Local Court

Presiding Judge: Regional Judge, Nova (1) Military Region Court — *Name not stated in the available case record*

Investigating Officer: U Myo Win Kyaw (မျိုးဝင်းကျော်)

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CHAPTER 2

**Why did some villagers burn and destroy U Khin Maung
Hla's shrimp farm?**

1. Main reason — Dissatisfaction over alleged unlawful acquisition of the land

In this case, this question was an important issue. When the court made its judgment concerning the arson incident that occurred in 2020, the court considered this matter in its reasoning.

The court's reasoning stated that the defendants were dissatisfied with the plaintiff, U Khin Maung Hla, because they claimed that the plaintiff's farm/shrimp farm had **forcibly taken land belonging to the defendants**.

The court further found that, because the defendants were dissatisfied with the plaintiff's continued operation and livelihood at the site, they **wanted him to leave the area** and, with that intention, set fire to the buildings owned by the plaintiff.

Therefore, **according to the court's reasoning, the main motive was dissatisfaction over land ownership and the intention to remove U Khin Maung Hla from the area.**

It should be noted that the proceedings did not determine how U Khin Maung Hla had allegedly unlawfully acquired the land.

2. In the 2020 arson case, the ULA/AA court effectively recognized U Khin Maung Hla's ownership of the property

In the 2020 case, the plaintiff, U Khin Maung Hla, presented before the court that he owned the huts, fiberglass boats, equipment, and business-related structures located within the shrimp farm.

Most importantly, **the court's own judgment referred to "the 11 huts owned by the plaintiff, U Khin Maung Hla (also known as U Tin Wai)."**

In addition, the court accepted that property belonging to U Khin Maung Hla had been burned and destroyed and convicted the defendants under **Section 436 of the Penal Code**.

Therefore, **although the 2020 judgment did not finally determine the underlying land title as a separate civil judgment, it is reasonable to state explicitly that, in its reasoning, the court accepted and relied upon U Khin Maung Hla's ownership of the shrimp-farming business, huts, boats, and other property.**

All of these facts are important reference points for analyzing the case involving the **Ngaman Shwe land shrimp-farming business owned by U Khin Maung Hla, which was seized by the ULA/AA in 2026.**

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Transcription of the Confidential Audio Recording Sent by U Tin Wai, also known as U Khin Maung Hla

My shrimp farm is located in Naman Yay Island, Wa Kauk Gyi Village Tract, Myebon Township.

In 2007, some villagers came to invite me to establish a business to build a shrimp farm. At that time, those lands were unused lands (fallow lands). It seemed that paddy cultivation had previously been carried out on those lands. When we were about to start work, we found that there was no longer any paddy cultivation at all. It had already become unused, fallow land.

It was in 2007. A group of villagers led by U Maung Kyar Tun came and asked me to cooperate with them in operating a shrimp farm. At that time, I was running a shrimp-buying business, a shrimp collection station. Previously, I was a schoolteacher.

When I went to look at the site, the land where the shrimp farm was to be constructed was also fallow land. Therefore, in 2007, I invested MMK 36 million as capital to develop the land as a shrimp farm. These lands also belonged to the people who had come to invite me. It was a kind of joint-investment business. I provided the financial capital, while the villagers invested the land. We made an agreement that each person would own half of the fish and shrimp that would be produced. The ownership of all the land was also arranged on a fifty-fifty basis between the villagers and me.

That was how we conducted the business.

Naman Yay Island is a place that is almost always affected by storms, so the shrimp-farming business was not profitable. Therefore, the following year we had to rebuild the embankment. At that time, excavating machines were not yet available. Because the embankment frequently collapsed, we had to rebuild it repeatedly.

Because the profits were low and I suffered many losses, I no longer wanted to continue operating the business. Therefore, I requested that the money I had invested be repaid to me in installments.

The villagers told me that they were no longer able to repay the money for the land in which I had invested. They told me to buy the land at a price of MMK 100,000 per acre. I said that I could not buy it.

The reason was that I was operating a shrimp-buying business in Pauktaw Township and living in Sittwe, so it was not possible for me to buy the land. I told them that I only wanted to recover my money.

The villagers asked me to purchase the land at MMK 100,000 per acre. I no longer asked the villagers to repay the money I had originally invested. Instead, I only asked to purchase the land at MMK 100,000 per acre.

I also thought of one thing. If I went to court and faced a case, it would cost me more money. Therefore, I purchased land from 11 villagers at MMK 100,000 per acre.

There were also people who were not interested in continuing the shrimp-farming business, but their lands were still included within the shrimp farm. Under the government laws of that period, these lands were also unused, fallow lands. Nevertheless, I paid them MMK 100,000 per acre and purchased those lands.

There were 32 people in total, and four of them did not sell their land. I purchased land from 28 people at MMK 100,000 per acre. I had to exclude their lands.

When we reached 2015, our area entered an interim situation. When the Myanmar government was unable to exercise control and the Arakan Army was also unable to exercise control, my shrimp farm was burned down and destroyed. They also came and attacked me with knives and drove me out. I suffered losses of more than MMK 100 million. The area of farmland I was operating was also more than 30 acres.

At that time, I filed a complaint with General Tun Myat Naing. The Arakan People's Government had not yet emerged. I filed a complaint with Commander-in-Chief General Tun Myat Naing. The Commander-in-Chief instructed Colonel Daung Yan to investigate the arson case. Colonel Daung Yan was in the Alpha 1 Military Region. He was in the jungle.

They investigated us for exactly two months.

Colonel Daung Yan asked me for the contracts. I told him that the sales and purchase contracts no longer existed. Therefore, he asked the villagers, "Did you have any land sales and purchase transactions?"

The villagers denied that they had sold the land.

They said that I had colluded with the dictators and the Myanmar military and had taken possession of the land.

I denied this and said that I had purchased the land by paying money to the villagers.

Therefore, Colonel Daung Yan suspended the dispute for about one month.

During this period, some of the villagers began to admit that they had indeed conducted the sales and purchase transactions.

After Colonel Daung Yan's investigation, I was given permission to resume operating the business in 2020.

Colonel Daung Yan warned the villagers that action would be taken if lawless acts of violence occurred again in the future.

With Colonel Daung Yan's permission, I operated the business from 2020 until 2026.

On 1 January 2026, General Tun Myat Naing came to Naman Yay Island.

There was also a sentence imposed by an Arakan Army court on those who burned and destroyed my shrimp farm. The court also ordered them to pay MMK 50 million in compensation to me. There were people who were dissatisfied with this. I no longer demanded the MMK 50 million. I said that if we could settle the matter with them and reach an agreement, that would be enough, and I left it at that.

They complained to General Tun Myat Naing.

They complained that I had collaborated with the Myanmar government military, collaborated with the dictators, and had taken our land by doing so.

Therefore, I think the General began to view me differently.

He said that I would be investigated by military intelligence and that a commission would be formed to investigate the matter.

I was investigated by a military intelligence officer, a person named Kyaw Lin Chay from the party, U Tin Myo Aung from the party, and a military intelligence commander.

I was investigated for two days.

I explained that I was not someone who had collaborated with the Myanmar military, that I had not built this shrimp farm in cooperation with the military, and that I had conducted a joint-investment business with these villagers.

I explained that I had not taken the land by collaborating with the Myanmar military.

Since the allegation made by some villagers that I had collaborated with the Myanmar military and taken the land was not substantiated, no action could be taken against me.

I was investigated for two days, on 23 and 24 January 2026.

Finally, the commission arrived.

The commission consisted of U Aung Thar Win, the Police Chief; U Aye Kyaw Than, the Attorney General; U Thar Htun Chay, a member from the Land Administration Department; U Maung Oo Kyaw, Director of the Land Administration Department; Lieutenant Colonel Khaing Zaw Lin from the Beta (2) Military Region; and one person from military intelligence.

I explained everything from beginning to end.

The villagers who had conducted the joint business with me also admitted that they had jointly conducted the business with me.

After the commission learned all of this, they left. I also waited for the decision. After that, Police Chief U Aung Thar Win called me privately and met with me. He told me that I had to give my land to the ULA/AA.

He said that because I was not on good terms with the local people, the ULA/AA would have to confiscate my land. I responded that confiscating the land because I was not on good terms with the local people was not fair.

I requested that, if I was having difficulties with the local people, they should help resolve the matter.

Police Chief U Aung Thar Win said that the land would not be given to the villagers either, and that, as compensation for my loss, they would provide me with replacement land in the Maungdaw area.

I said that this was not possible and that it could become entangled in the judicial proceedings of the ICJ.

Police Chief U Aung Thar Win told me to submit a petition.

I had to submit a petition.

On 9 May 2026, I was summoned again.

It was Police Chief U Aung Thar Win himself who summoned me.

Police Chief U Aung Thar Win asked me to write that I would donate these lands to the Arakan Army. He told me to write it immediately. I said that I could not write it yet. I asked for two days.

On 11 May 2026, I went to Police Chief U Aung Thar Win.

He asked me, “Why did you not include in the letter you wrote that you would donate the lands to the ULA/AA?”

I explained that I did not include it because I could not donate the land.

He told me that if I did not donate it, they would confiscate it anyway.

On 21 July 2026, Police Chief U Aung Thar Win called me to a monastery.

Some villagers had also been summoned.

He read a letter to me stating that I had to leave the land permanently.

He read a letter stating that I had to take my belongings within seven days and permanently leave the land. I requested that they provide me with a written notice so that there would be firm and reliable evidence. Police Chief U Aung Thar Win said that the letter would be issued on Friday.

However, the letter did not arrive on Friday. While I continued waiting, the letter did not arrive on the 24th either. It also did not arrive on the 28th.

After telling me that I would be driven out, seven soldiers and seven police officers came and stayed on my land.

I continued doing my own work.

The soldiers were still on my land.

On 3 August 2026, U Aung Thar Win came down again.

He did not bring any letter.

About 30 more soldiers came with him.

They came saying that they would evict me and arrest the workers who were working there.

They surrounded the area, all carrying guns.

They told me to leave the land.

They said that if I did not leave the land, they would sue me.

I said that they needed to provide me with strong and valid documentary evidence.

I had already paid taxes for my businesses. I asked whether those tax payments had no validity at all.

They said that they did not. They said that because an order had been issued by a government, it did not apply.

I requested that if an order had been issued by a government, they should provide me with the official written order. They said that I would be arrested if I did not leave the land.

The war-displaced people who were working in my business also put their hands together, bowed, and pleaded. They pleaded because they had nowhere else to go.

But they did not accept their plea. They said that the entire population of Rakhine was displaced by war and that, therefore, they could not provide any special privilege.

I gradually moved all of my belongings to my mother's village. They drove me out without issuing any written document whatsoever. Now they are catching shrimp and operating businesses on my land.

I also went to U Maung Oo Kyaw, the head of the Township Land Records Department. I asked whether they could confiscate my land in this manner. He told me that because my land was classified as fallow land, it was considered land administered by the government.

That is all.

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CHAPTER (3)

ULA/AA and the Erosion of Property Rights

[illegible]

Transcription

Arakan People's Authority

Judicial Department

Nova (1) Military Region Court

DECREE FOR RECOVERY OF MONEY
Section 34 of the Civil Procedure Code
Civil Case No. 14/2021

Plaintiff:

Maung Tin Wai (also known as Khin Maung Hla)

Versus

U Htun Maung Tha and 28 Others (Defendants)

This case was heard and finally adjudicated on **21 October 2022** before the Judge of the Nova (1) Military Region Court, with the Plaintiff, **Maung Tin Wai (also known as Khin Maung Hla)**, and the Defendants, **U Htun Maung Tha and 28 others**, appearing before the Court.

It is hereby ordered that:

U Htun Maung Tha and the 28 Defendants shall pay Maung Tin Wai (also known as Khin Maung Hla) the sum of MMK 50,000,000 (Fifty Million Myanmar Kyats). In addition, they shall pay local court costs amounting to MMK 376,000 (Three Hundred and Seventy-Six Thousand Myanmar Kyats).

Issued under the seal of this Court and signed on **21 October 2022**.

Signature: _____

Judge

Date of Signature: 21 October 2022

From Destruction in 2020 to Seizure in 2026: ULA/AA's Disregard for Judicial Protection of Property Rights

The case of Maung Tin Wai, also known as Khin Maung Hla, raises serious concerns about the consistency of ULA/AA's own judicial and administrative institutions and, more fundamentally, about the protection of property rights under its system of governance.

The sequence of events is particularly significant. In **2020, property and a business compound associated with Maung Tin Wai (Khin Maung Hla) were reportedly burned and destroyed.** The consequences of that incident subsequently generated separate legal proceedings, including criminal proceedings concerning the destruction itself and a **civil case concerning the resulting property and financial loss.**

In 2022, the ULA/AA judicial system itself provided an important form of legal recognition to the claimant's interests. On **21 October 2022**, the Nova (1) Military Region Court, under the Judicial Department of the Arakan People's Authority, issued a decree in **Civil Case No. 14/2021**, ordering U Htun Maung Tha and 28 defendants to pay **MMK 50,000,000** to Maung Tin Wai (Khin Maung Hla), together with **MMK 376,000 in court costs.**

This decree is significant because it demonstrates that, at that time, the ULA/AA judicial system was prepared to recognize and provide a judicial remedy for the claimant's property-related loss. In other words, following the destruction associated with the 2020 incident, the judicial branch did not simply disregard the claimant's property interests; it issued a monetary decree in his favor.

The situation becomes deeply problematic when this 2022 judicial decision is considered alongside the **2026 seizure of the property by ULA/AA administrative authorities.**

A Contradiction Within ULA/AA's Own System

The central concern is not simply that property was subsequently taken. The more serious issue is the apparent contradiction between **ULA/AA's judicial protection of the claimant's interests in 2022 and its administrative interference with those interests in 2026.**

In 2022, the judicial branch effectively treated the claimant's property-related loss as something deserving legal remedy. Yet only several years later, the administrative authorities of the same governing structure moved to acquire or seize property associated with that same claimant.

This creates a fundamental question:

If the ULA/AA judicial system recognized and provided a remedy for the claimant's property-related interests in 2022, on what legal basis could the ULA/AA administrative authorities subsequently remove or take away those interests in 2026?

If the 2026 seizure was carried out without adequately considering the 2022 decree, without explaining how the seizure was legally compatible with that earlier judicial decision, or without providing an effective judicial or administrative remedy, then the issue goes beyond an ordinary land dispute. It raises concerns about **the supremacy of administrative power over judicial protection.**

From Burning to Compensation—and Then to Seizure

The chronology is particularly troubling:

2020 — Property was reportedly burned and destroyed.

2022 — ULA/AA's court ordered MMK 50 million in compensation in the related civil proceedings.

2026 — ULA/AA administrative authorities moved to seize or acquire the property.

Viewed together, these events suggest a continuing pattern of interference with the claimant's property interests rather than three unrelated incidents.

The person who suffered property-related loss following the 2020 destruction subsequently obtained a judicial remedy in 2022. Yet the same property interests were later placed at risk through administrative action in 2026.

From a human rights perspective, this raises the concern that a person may have been **first deprived of the use or value of property through destruction, then recognized as entitled to compensation through a judicial process, and later subjected to another form of property deprivation through administrative action.**

This is why the 2026 seizure cannot reasonably be examined in isolation from the history beginning in 2020.

The Problem of Administrative Power Over Judicial Decisions

A particularly serious concern arises if ULA/AA's administrative authorities treated the 2022 judicial decree as irrelevant.

A functioning rule-of-law system requires judicial decisions to have meaningful legal effect. If an administrative authority can simply disregard a judicial determination whenever it becomes inconvenient, judicial protection becomes largely symbolic.

In such circumstances, the question is no longer merely whether the claimant owns a particular parcel of land. The deeper question is whether **a judicial decision issued by ULA/AA itself can actually constrain the subsequent exercise of administrative power.**

If the answer is effectively no, then the judicial branch risks becoming subordinate to the executive or administrative authority.

That would raise serious concerns regarding **separation of powers, judicial independence, legal certainty, and effective remedies.**

The Appearance of “Rule by Law” Rather Than “Rule of Law”

ULA/AA may seek to justify the 2026 seizure by referring to a land-acquisition law or administrative procedure. However, merely citing a law does not automatically make a deprivation of property lawful.

A legitimate compulsory acquisition process would ordinarily require, among other things:

- a clearly stated public purpose;
- a genuine and demonstrable necessity;
- adequate prior notice;
- an opportunity to object;
- meaningful participation by affected landowners;
- an effective mechanism for review or appeal;
- fair and appropriate compensation; and
- a clear explanation of how the acquisition is consistent with existing judicial decisions and property rights.

Without such safeguards, the invocation of a legal provision can become little more than a mechanism for giving an appearance of legality to an otherwise arbitrary exercise of power.

This distinction is crucial:

Having a law is not the same as exercising power according to the rule of law.

Where authorities use legal language to take property while denying meaningful procedural protection to the affected owner, the system risks becoming **rule by law rather than rule of law**.

Was the 2022 Court Decision Merely Symbolic?

The 2022 decree also raises a broader question about the credibility of ULA/AA's judicial system.

If an individual can bring a civil claim before a ULA/AA court, obtain a judgment recognizing a property-related loss and awarding MMK 50 million in compensation, but the administrative authorities can later take action that effectively undermines the same property interests without adequately addressing that judgment, then the practical value of the judicial system becomes questionable.

A court cannot meaningfully protect rights if its decisions can subsequently be neutralized by administrative authorities.

The danger is that the judiciary becomes merely an institutional façade: it may issue judgments that appear to protect individual rights, while the administrative branch retains the practical power to undo those protections.

That would seriously undermine public confidence in the independence and effectiveness of the judicial system.

A Pattern of Property Deprivation

From a critical human rights perspective, the most troubling interpretation is therefore not simply that ULA/AA made an administrative decision in 2026.

Rather, the sequence may demonstrate a **progressive erosion of the same individual's property interests**:

2020: destruction of property;

2022: judicial recognition of the resulting property-related loss and an award of compensation;

2026: subsequent administrative action against the property itself.

This sequence raises the possibility that the protection offered by the 2022 judicial decree was ultimately rendered ineffective by later administrative action.

If so, the 2026 seizure would represent more than a conventional land-acquisition dispute. It could be understood as a challenge to the very principle that **property rights recognized through judicial proceedings should not be arbitrarily overridden by administrative authorities**.

Human Rights Implications

The case therefore raises several interconnected human rights concerns:

1. **Right to Property** — whether the claimant was arbitrarily deprived of property or property-related interests.
2. **Right to an Effective Remedy** — whether the 2022 judicial remedy had any meaningful effect if the claimant's property interests could later be removed through administrative action.
3. **Due Process** — whether the 2026 acquisition was preceded by adequate notice, participation, objection, review, and compensation procedures.
4. **Rule of Law** — whether administrative authorities acted within clearly defined legal limits.
5. **Judicial Authority and Independence** — whether the 2022 judicial decision was respected by the administrative branch.

6. **Legal Certainty** — whether individuals could reasonably rely upon property protections previously recognized by the same judicial system.

Conclusion

The most serious concern arising from this case is therefore the apparent contradiction between **ULA/AA's judicial recognition of property-related rights in 2022 and its subsequent administrative seizure of the property in 2026.**

The 2022 Civil Case is particularly important because it arose in the aftermath of the **2020 burning and destruction** and resulted in a monetary decree in favor of Maung Tin Wai (Khin Maung Hla). The decision demonstrates that ULA/AA's own judicial institution was willing to provide legal protection and compensation for the claimant's property-related loss.

Yet, if ULA/AA's administrative authorities subsequently disregarded that judicial history and seized the property without demonstrating a lawful, necessary, proportionate and procedurally fair basis, then ULA/AA's conduct reveals a profound institutional contradiction:

The same authority that once recognized and compensated the claimant for the loss of his property later exercised administrative power to take away the property itself.

This raises a fundamental human rights concern: **if a judicial decision can protect a person's property one day but an administrative authority can effectively nullify that protection several years later, then the judicial protection of property rights becomes illusory.**

From this perspective, the 2026 seizure should not be examined as an isolated administrative measure. It should be understood against the full trajectory beginning with the **2020 destruction, continuing through the 2022 judicial remedy, and culminating in the 2026 administrative seizure.**

The central issue is therefore not merely whether ULA/AA possessed a legal provision that could be cited to justify the seizure. The deeper question is whether **ULA/AA itself respected the legal protection previously granted by its own judiciary, and whether its administrative authorities remained subject to the law rather than placing administrative power above judicial protection.**

If the evidence establishes that the 2026 seizure disregarded the 2022 decree, lacked meaningful due process, and deprived the claimant of effective remedies, the conduct can be strongly criticized as **arbitrary deprivation of property, administrative overreach, and a serious failure of rule-of-law safeguards.**

CHAPTER (4)

Arbitrary Deprivation of Property

This case should not be viewed merely as a dispute over land ownership. It raises broader concerns about **the rule of law, protection of property rights, and the relationship between ULA/AA's judicial and administrative authorities.**

In 2020, property and a business compound associated with Maung Tin Wai, also known as Khin Maung Hla, were reportedly burned and destroyed. Following the destruction, legal proceedings were initiated concerning the resulting property and financial losses. In 2022, ULA/AA's judicial system recognized the claimant's property-related interests. On 21 October 2022, the Nova (1) Military Region Court, under the Judicial Department of the Arakan People's Authority, issued a decree in Civil Case No. 14/2021 ordering U Htun Maung Tha and 28 defendants to pay MMK 50,000,000, together with MMK 376,000 in court costs.

This judicial decision is significant because it demonstrates that ULA/AA's own judicial institution was, at that time, prepared to recognize and provide a legal remedy for the claimant's property-related loss.

The situation becomes particularly problematic when this judicial protection is considered alongside the **2026 administrative seizure or acquisition of the property**. This creates a fundamental question: **If ULA/AA's judicial system previously recognized the claimant's property-related interests, on what legal basis could ULA/AA's administrative authorities subsequently remove or interfere with those interests?**

If the 2026 action was carried out without adequately considering the 2022 court decree, without explaining how the seizure was legally compatible with that judgment, or without providing an effective opportunity to challenge the decision, the matter goes beyond an ordinary land dispute. It raises concerns about whether **administrative power can override or neutralize judicial protection.**

From Destruction to Compensation—and Then to Seizure

The chronology is particularly significant:

- **2020** — Property was reportedly burned and destroyed.
- **2022** — ULA/AA's court recognized the resulting property-related loss and ordered MMK 50 million in compensation.
- **2026** — ULA/AA administrative authorities moved to seize or acquire the property.

Viewed together, these events suggest a continuing trajectory of interference with the same individual's property interests rather than three completely unrelated incidents.

From a human rights perspective, the concern is that an individual may have first suffered the destruction of property, subsequently obtained judicial recognition and compensation, and then faced another form of deprivation through administrative action.

Administrative Power Versus Judicial Protection

A serious rule-of-law concern arises if administrative authorities were able to treat the 2022 judicial decision as irrelevant.

A functioning legal system requires judicial decisions to have meaningful legal effect. If an administrative authority can effectively undermine a judicial determination without providing a clear legal justification or judicial review, judicial protection risks becoming merely symbolic.

The central question is therefore not simply **who owns the land**. It is whether a judicial decision issued by ULA/AA can actually constrain subsequent administrative action.

If administrative authorities possess the practical ability to override judicial protection, this raises concerns about **separation of powers, judicial independence, legal certainty, and effective remedies**.

Rule by Law Versus Rule of Law

ULA/AA may seek to justify the 2026 seizure by referring to a land-acquisition law or administrative procedure. However, the mere existence or citation of a law does not automatically make a deprivation of property lawful or legitimate.

A lawful compulsory acquisition process would ordinarily be expected to include safeguards such as:

- a clearly defined public purpose;
- genuine necessity;
- adequate prior notice;
- an opportunity to object;
- meaningful participation by affected landowners;
- access to review or appeal;
- fair and appropriate compensation; and
- an explanation of how the acquisition is compatible with existing judicial decisions and property rights.

Where these safeguards are absent or merely formal, legal provisions can become instruments used to **give an appearance of legality to an otherwise arbitrary exercise of power**.

The distinction is therefore important:

Having a law is not the same as exercising power according to the rule of law.

If authorities invoke legal provisions while denying meaningful procedural protection to the affected owner, the system risks becoming **rule by law rather than rule of law**.

Human Rights Implications

The case raises several interconnected human rights concerns:

1. **Right to Property** — whether the claimant was arbitrarily deprived of property or property-related interests.
2. **Effective Remedy** — whether the 2022 judicial remedy had meaningful effect if the claimant's property interests could later be undermined by administrative action.
3. **Due Process** — whether the 2026 acquisition was conducted with adequate notice, participation, objection, review, and compensation.
4. **Rule of Law** — whether administrative authorities remained subject to clearly defined legal limits.
5. **Judicial Authority and Independence** — whether the 2022 judicial decision was respected by the administrative authorities.
6. **Legal Certainty** — whether individuals could reasonably rely upon property protections previously recognized by the same judicial system.

Conclusion

The central concern is the apparent contradiction between **ULA/AA's judicial recognition of property-related rights in 2022 and its subsequent administrative action against the property in 2026**.

The 2022 Civil Case is particularly important because it followed the 2020 destruction and resulted in a monetary decree in favor of Maung Tin Wai (Khin Maung Hla). Yet, if ULA/AA administrative authorities subsequently acted against the property without adequately addressing that judicial history, without demonstrating a lawful and necessary basis, and without providing meaningful procedural safeguards, the case reveals a serious institutional contradiction.

The same governing structure that previously provided judicial protection for the claimant's property-related loss later exercised administrative power that allegedly placed those property interests at risk.

Therefore, the 2026 seizure should **not be examined in isolation**. It should be understood within the broader trajectory from the **2020 destruction, through the 2022 judicial remedy, to the 2026 administrative seizure**.

If the evidence establishes that the 2026 action disregarded the 2022 decree, lacked meaningful due process, and deprived the claimant of effective remedies, it can be strongly criticized as **arbitrary deprivation of property, administrative overreach, and a serious failure of rule-of-law safeguards**.

CHAPTER (5)

Arbitrary Taxation

Arbitrary Taxation and the Loss of Taxpayers' Rights under Militarized Governance

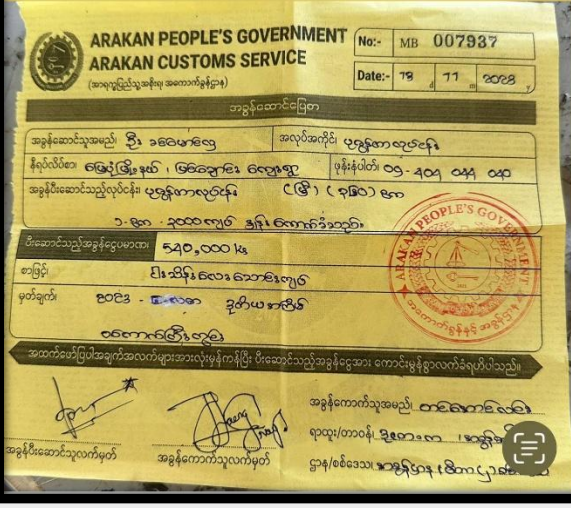
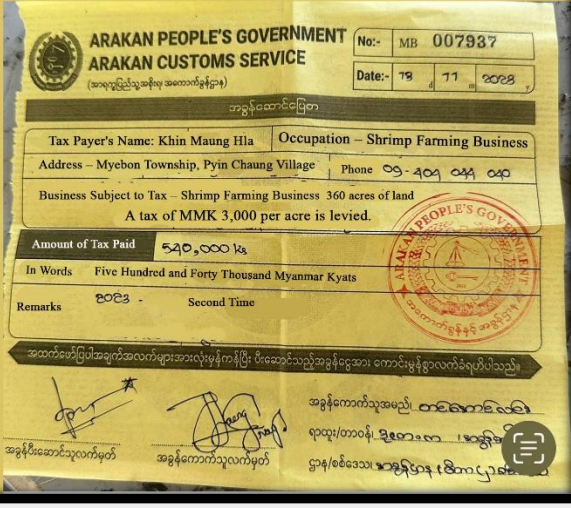
Original	Translation
	

Figure 9

Original

 ARAKAN PEOPLE'S GOVERNMENT ARAKAN CUSTOMS SERVICE (အာရှပြည်သူ့အစိုးရ အကောက်ခွန်ဌာန)		No:- MP 001415 Date:- 6 / 11 / 2024
အခွန်ဆောင်သူအမည်: ဦးခင်မောင်မြင့် အလုပ်အကိုင်: ဗဟိုကုန်သွယ်ရေး နံရံလိပ်စာ: ငြိမ်းချမ်းကျေးရွာ၊ မြေပုံအမှတ် ၄၄-၄၀၄/၄၀ ၄၀-၄၀ အခွန်ဆောင်သည့်လုပ်ငန်း: ဗဟိုကုန်သွယ်ရေး (၁၃၀၀၀) ဧကခွန်ခံခြင်း		
ဝယ်ယူသည့်အခွန်ငွေပမာဏ: 1080000 - ချမ်းသာလှစေရန်အတွက် မှတ်ချက်: မြတ်နိုးစွာဖြင့် (၁၁.၁၁.၂၀၂၄) ခုနှစ်		
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Translation

 ARAKAN PEOPLE'S GOVERNMENT ARAKAN CUSTOMS SERVICE (အာရှပြည်သူ့အစိုးရ အကောက်ခွန်ဌာန)		No:- MP 001415 Date:- 6 / 11 / 2024
Tax Payer's Name: Khin Maung Hla Occupation - Shrimp Farming Business Address - Myebon Township, Pyin Chaung Village Phone Business Subject to Tax - Shrimp Farming Business 360 acres of land A tax of MMK 3,000 per acre is levied.		
Amount of Tax Paid 1080000 - In Words		
အထက်ဖော်ပြပါအချက်အလက်များအားလုံးမှန်ကန်ပြီး ဝယ်ယူသည့်အခွန်ငွေအား ကောင်းမွန်စွာလက်ခံရရှိပါသည်။		
အခွန်ဝယ်ယူသူလက်မှတ် 	အခွန်ကောက်သူအမည်: ဦးခင်မောင်မြင့် ရာထူး/တဝန်/ရုံးစာရင်း: ၁၆၂၄၂၄၂၄ ဌာန/စစ်ဆေးရေးအမှုကြီးကြပ်ရေးမှူးရုံး(၁)	အခွန်ကောက်သူလက်မှတ် 

Figure 10

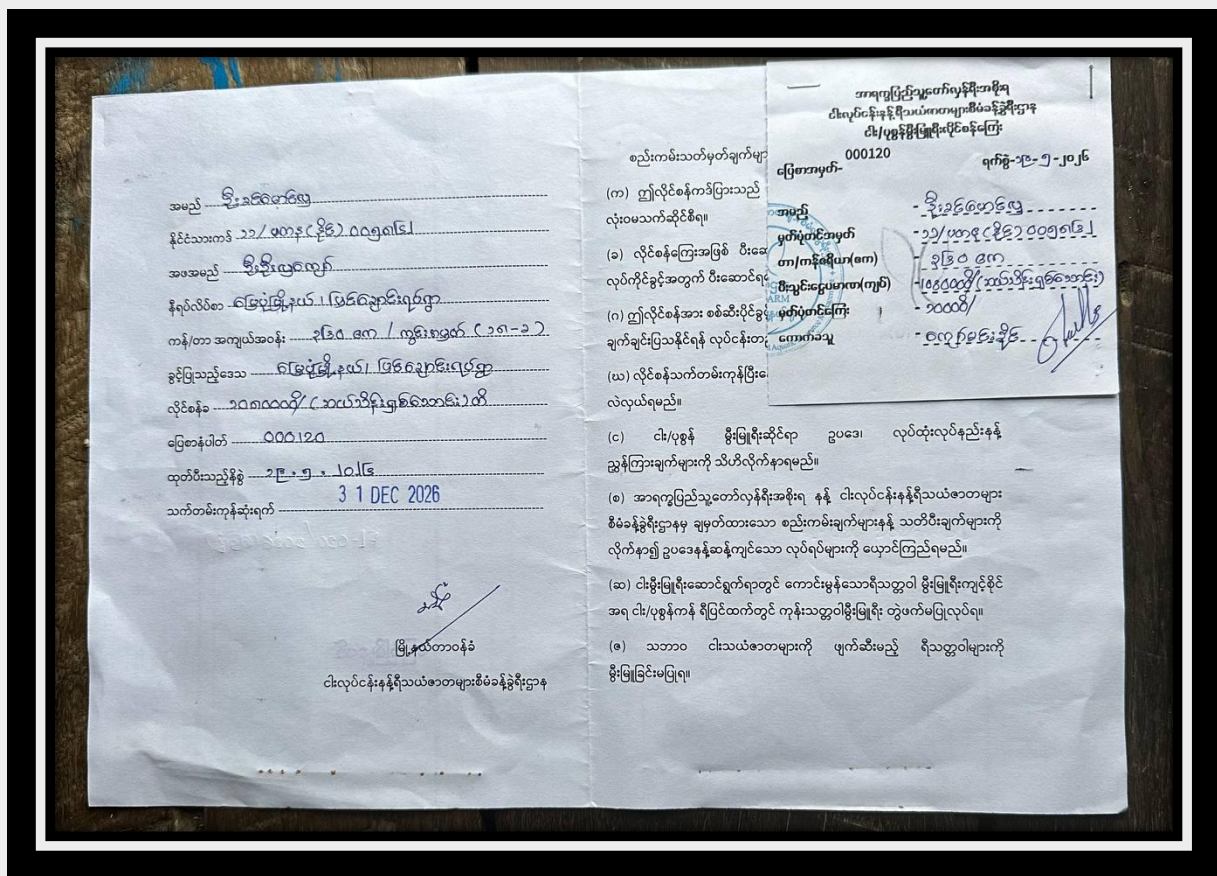


Figure 11

Information from figure 11

Name: U Khin Maung Hla

Citizenship Card: 12 / Ma Ta Na (Naing) 005861

Father's Name: U Oo Hla Kyaw

Residential Address: Pyin Chaung Village, Myebon Township

Pond/Fishery Area: 36.0 acres / Plot No. (18-3)

Authorized Area: Pyin Chaung Village, Myebon Township

License Fee: 108,000 kyats (One hundred and eight thousand kyats)

Receipt No.: 000120

Date of Issue: 19 May 2026

Expiry Date: 31 December 2026

Bottom Signature / Office Stamp Text:

Township Officer

Department of Fisheries and Natural Resource Management

In assessing this case, the primary focus should not be limited to the alleged seizure of the shrimp-farming business and land in 2026. Rather, the entire sequence of events should be examined in context: **the reported burning and destruction of the shrimp-farming business in 2020; the compensation decree issued by ULA/AA's Judicial Department in 2022; the regular collection of taxes from 2022 through 2026; and, ultimately, the alleged seizure of the very business and property for which taxes had been paid.**

Taken together, this sequence raises questions not only about the legality of the taxation itself, but also about **the nature of administrative authority, the accountability of authorities toward taxpayers, property rights, the rule of law, and whether administrative power remains subject to judicial and human-rights limitations.**

1. From a Burned and Destroyed Business to a Taxed Business

In 2020, the shrimp-farming business and related business premises associated with Maung Tin Wai (also known as Khin Maung Hla) were reportedly burned and destroyed. The incident caused significant damage to property and economic interests and was subsequently followed by separate criminal and civil legal proceedings.

An important part of this case is the decision issued on 21 October 2022 by the Nova (1) Military Region Court under ULA/AA's Judicial Department in Civil Case No. 14/2021. The court ordered U Htun Maung Tha and 28 defendants to pay **MMK 50,000,000 in compensation, together with MMK 376,000 in court costs**, to Maung Tin Wai (Khin Maung Hla).

This decision is significant because ULA/AA's own judicial institution recognized the claimant's property-related loss and provided a judicial remedy.

However, while the court recognized the loss and ordered compensation, **taxes were reportedly collected from the same business for several years.** Ultimately, the business and property were allegedly seized through administrative authority.

This creates a **serious contradiction between judicial recognition of rights, administrative taxation, and the subsequent deprivation of property.**

2. Regular Taxation Over Several Years

According to the available records, taxes were regularly paid to ULA/AA in **2022, 2023, 2024, 2025, and 2026**, at a rate of **MMK 3,000 per acre for 360 acres, paid every six months.**

At MMK 3,000 per acre for 360 acres, the amount payable per collection period was **MMK 1,080,000.** If collected every six months, the annual amount would be **MMK 2,160,000.** The fact

that payments reportedly continued for several consecutive years is significant because it indicates that the taxation was not merely an isolated event but **a systematic and continuing form of administrative taxation**.

The records further indicate that the tax had been paid **through December 2026**.

This is particularly important because such tax payments demonstrate that there was an ongoing **tax relationship between the business owner and the governing authority concerning the business**.

Yet if the business was subsequently seized despite the regular payment of taxes, a fundamental question arises:

Why were the property and business interests of a taxpayer not effectively protected despite the taxpayer having fulfilled the tax obligations imposed by the authority for several years?

3. Taxation Is Not Merely a Right of the Authority

In a legitimate taxation system, authorities may have the power to collect taxes, but taxpayers must also possess corresponding rights.

Taxation should:

- Have a clear legal basis;
- Clearly establish the applicable tax rate;
- Clearly identify the business or property subject to taxation;
- Provide taxpayers with evidence or receipts of payment;
- Provide mechanisms to challenge or review taxation decisions;
- Require the taxing authority to be accountable for the exercise of its powers; and
- Prevent the abuse of administrative authority against taxpayers' property and businesses.

If taxes are collected without clear legal procedures, taxpayers are denied meaningful opportunities to object, their tax payments are later disregarded, and their property can nevertheless be seized, then taxation may cease to function as a **legitimate taxation system and instead become a mechanism for coercive exercise of power**.

4. Administrative Taxation under Militarized Governance

A deeper concern in this case is whether taxation was carried out **not through an independent and accountable civilian administrative system, but under a system in which military power and administrative authority are closely intertwined**.

Administrative taxation should ordinarily be based on tax law, financial administration, and public governance. However, if it increasingly depends on **orders, military authority,**

administrative pressure, and unilateral decisions by authorities, the taxation system risks losing the characteristics of a civilian tax system.

In particular, if authorities possess the power to punish a taxpayer for refusing to pay taxes, but there is no independent institution capable of reviewing the authorities' actions when the taxpayer's property is seized, the **power imbalance between the taxpayer and the administrative authority becomes extreme**.

Under such circumstances, taxation may cease to be a financial obligation imposed for the public interest and instead become **a mechanism for reinforcing the authority of those governing over the population**.

Where taxpayers are expected only to fulfill their tax obligations, while the authorities are not clearly required to remain accountable for their exercise of power, such a system may exhibit characteristics of **authoritarian governance**.

5. The Relationship between Taxation and Military Power

If decisions concerning taxation are more closely connected to military command structures than to independent administrative procedures, the risk of violating taxpayers' rights becomes significantly greater.

This is because the essential nature of military power is based on **command and obedience**, whereas the rule of law requires **the limitation of governmental power, accountability, and the ability to subject administrative decisions to independent review**.

When taxation is administered through a militarized system, the critical question may no longer simply be:

“How much tax must be paid?”

but rather:

“Who has the authority to order the payment, and under what legal authority?”

If taxpayers are treated not as rights-bearing individuals under the law but merely as **subjects required to obey orders**, taxation risks becoming an instrument of coercive governance.

Therefore, it is necessary to investigate the extent to which ULA/AA's taxation practices are connected to military authority, whether taxation decisions follow independent civilian administrative procedures, and whether taxpayers have access to judicial review or other effective mechanisms for challenging administrative decisions.

6. Paying Taxes but Receiving No Protection

One of the most serious human rights concerns in this case is that **the taxpayer's obligations appear to have been fully enforced while the taxpayer's corresponding rights were allegedly not protected.**

Taxes were paid.

Taxes were paid regularly.

Taxes were reportedly paid every six months.

The records indicate that taxes were paid through December 2026.

Yet, despite these payments, **the business was allegedly seized rather than protected.**

This raises serious questions about whether a fair and predictable economic environment existed for the taxpayer.

If payment of taxes served as recognition of the business's lawful status, then the authority should explain **on what legal basis the business could subsequently be taken despite having accepted those tax payments.**

7. Collecting Taxes and Then Seizing the Property

One of the most serious criticisms arising from this case is the possibility of **a double exercise of power over the taxpayer's economic interests through taxation and property seizure.**

The owner was required to pay taxes on the land and business. Having paid those taxes, the owner could reasonably expect to continue operating the business. Yet if the business was subsequently seized through administrative action, the result may be that:

the authority first collected financial resources from the owner through taxation and then took control of the very economic asset from which those taxes had been generated.

If such conduct occurred without an adequate legal basis and without meaningful procedural safeguards, it should be criticized as going beyond ordinary taxation and potentially constituting **economic coercion and administrative interference with property rights.**

8. Using the Label “Tax” to Give an Appearance of Legality to Power

The collection of taxes can be a legitimate governmental function for generating revenue for public purposes. However, **simply labeling a demand for money as a “tax” does not automatically make the exercise of power lawful.**

A legitimate taxation system requires:

A legal basis.
Accessibility and clarity of the law.
A clearly defined tax rate.
Protection of taxpayers' rights.
Accountability of the authorities.
A right to object.
A right to independent review.

Without these safeguards, the use of the term “tax” to justify financial demands may represent **an attempt to give an appearance of legality to the exercise of power rather than using law to protect rights.**

Such a system may therefore be more accurately criticized as **“rule by law” rather than “rule of law.”**

9. Human Rights Consequences of Arbitrary Taxation

If taxation becomes arbitrary or abusive, the consequences extend beyond financial loss.

It may:

- 1. Violate property rights.**
- 2. Interfere with the freedom to operate a business.**
- 3. Undermine fair and due process.**
- 4. Weaken the rule of law.**
- 5. Undermine accountability of administrative authorities.**
- 6. Create fear and coercion among taxpayers, forcing them to comply with authorities out of fear rather than lawful obligation.**
- 7. Where effective judicial remedies are unavailable, leave taxpayers' rights without meaningful protection in practice.**

10. Critical Assessment of the 2020–2026 Sequence

The case should therefore be examined as a connected sequence:

2020 — The shrimp-farming business was reportedly burned and destroyed.

2022 — ULA/AA's court ordered MMK 50 million in compensation for the property-related loss.

2022–2026 — Taxes were regularly paid to ULA/AA in relation to the shrimp-farming business.

2026 — Despite the reported payment of taxes through December 2026, the business and property were allegedly seized.

These events should not be treated as isolated incidents. Rather, they should be examined as **a continuous sequence involving property, taxation, and administrative power.**

In particular, if a taxpayer paid taxes on the business but those tax payments did not provide any meaningful legal protection for the business, it is necessary to reconsider the **legitimacy and purpose of the taxation system, the accountability of the authorities, and the fairness owed to taxpayers.**

Conclusion

Taxation is a central issue of criticism in this case because records indicate that the shrimp-farming business regularly paid taxes to ULA/AA from 2022 through 2026, yet the business was allegedly seized despite those payments.

Furthermore, it is necessary to examine whether the taxation system operated through **transparent, accountable, and independent civilian administrative procedures, or whether it was implemented within a structure in which military and administrative authority were intertwined.**

If the evidence establishes that the taxation was imposed without a clear legal basis, without meaningful opportunities to challenge the demands, and under administrative or military pressure, the conduct may be strongly criticized as **arbitrary taxation.**

More seriously, if the authority collected annual taxes from the taxpayer while simultaneously failing to protect the taxpayer's business and property, such conduct may demonstrate **an administrative system that demands obligations from taxpayers while disregarding the corresponding responsibilities of the authority itself.**

A taxpayer should not be treated as a **"property owner" when taxes are being collected, only to have that person's ownership rights disregarded when the authorities seek to take the property.** Such conduct is fundamentally inconsistent with the principles of a fair and accountable taxation system.

Therefore, if the evidence confirms the alleged taxation practices and subsequent seizure, the case raises not merely a question about the legality of taxation but a broader concern regarding **abuse of administrative power, property rights, accountability, and the rule of law.**

Taxation is not solely a right of the authority. The power to tax carries corresponding obligations of accountability, transparency, legality, and respect for the rights of taxpayers.

If taxation is placed under the pressure of military and administrative power, it may cease to function as a public financial mechanism and instead become **an instrument for strengthening governmental control over the population.**

Such circumstances require serious scrutiny as to whether the system is moving away from **the Rule of Law toward Rule by Law.**

Chapter 6

Human Rights Violation Report

6.1 Primary Sources of the Report

This report is primarily based on a transcription extracted from a confidential audio recording in which U Khin Maung Hla gave his own account, Land Use Certificates/Form 105s, copies of business licenses, tax receipts, business-related evidence covering the period from 2007 to 2026, and a petition submitted by him to the relevant authorities.

In the audio recording, U Khin Maung Hla provides a detailed account of how he began operating a shrimp farming business in 2007, the dispute concerning the land, the destruction by fire in 2020, the investigation into that incident, and the events in 2026 in which he claims that he was pressured to hand over his land to the ULA/AA and was ultimately expelled from the land.

Based on these accounts, it is found that the ULA/AA unlawfully subjected U Khin Maung Hla to threats and coercion using armed forces, without following due process of law.

6.2. Background

In 2007, villagers from Wakaunggyi Village invited U Khin Maung Hla to come and cooperate in operating a shrimp farming business. At that time, the lands were found to be unused fallow lands.

Initially, the villagers contributed the land, while U Khin Maung Hla contributed financial capital, and they operated the business as a joint venture. Later, due to the business not generating profits and suffering losses, he stated that he purchased the lands from the villagers by paying them money. Of a total of 32 landowners, he stated that he purchased land from 28 of them and left the land belonging to the remaining 4 persons untouched.

According to U Khin Maung Hla's account, the lands were not forcibly seized, but were purchased with the consent of the landowners in exchange for payment. After 2010, those lands were legally registered in the name of U Khin Maung Hla, also known as U Win Tin, through Form 105 and Form (7).

6.3. Destruction by Fire in 2020

Around 2015, during a period of unstable administration in the area, his shrimp farm was set on fire and destroyed, and he was attacked with knives and driven away. As a result of the incident, he suffered substantial financial losses. U Khin Maung Hla reported the matter to General Tun Myat Naing, who assigned Colonel Daung Yan to conduct an investigation.

According to his account, the investigation lasted approximately two months, after which some villagers admitted that land transactions had taken place. Following the investigation, U Khin Maung Hla was permitted to resume operating the shrimp farm in 2020.

In addition, those who committed the arson were sentenced to imprisonment by an AA court, which also ordered them to pay compensation of 50 million kyats to U Khin Maung Hla.

6.4. Changing Circumstances in 2026

In 2026, the former Myanmar government administrative machinery had become completely non-functional, and a new administrative system under the Arakan People's Government had emerged.

According to U Khin Maung Hla, he was investigated again in January 2026. The main subject of the investigation was reportedly an allegation that U Khin Maung Hla had collaborated with the Myanmar military in confiscating land.

According to his statement, the investigation was conducted over two days, during which he explained that he had not collaborated with the Myanmar military to confiscate land. Ultimately, according to U Khin Maung Hla's testimony, no action could be taken because there was insufficient evidence to substantiate the allegation.

Subsequently, a commission was formed to conduct a further investigation. He stated that the commission included officials responsible for police, legal affairs, land administration, the military region, and intelligence matters. In this context, under international land governance standards, a change in administrative authority cannot automatically be regarded as extinguishing previously legally acquired land ownership or land-use rights.

The ULA/AA also failed to transparently disclose which law served as the legal basis for the investigation and whether any formal notices or official documents had been issued or provided.

6.5. Pressure to Hand Over the Land to the ULA/AA

After the commission's investigation, Police Chief U Aung Thar Win allegedly met with him privately and told him that he had to hand over the land to the ULA/AA, according to U Khin Maung Hla.

Furthermore, according to U Khin Maung Hla, on May 9, 2026, the police chief asked him to write a letter stating that he would "donate" the land to the Arakan Army. U Khin Maung Hla said that he could not write the letter immediately and requested additional time. On May 11, he was questioned again because he had not included that statement in the letter, and he stated that he was told, "If you do not donate it, we will seize it."

This constitutes one of the central human rights violations in the case.

It is apparent that the land was not being voluntarily donated, but was being transferred under the exercise of authority and coercion. Under international land governance standards, if a government or administrative authority seeks to acquire land for a public purpose, **a legal basis, a legitimate purpose, procedures, the right to object, and appropriate remedies/compensation** must be considered.

Therefore—

"Donate it, or we will seize it."

clearly indicates the use of **donation as a substitute for compulsory acquisition**.

In particular, the ULA/AA failed to clearly establish **under which law the land would be seized, which authority had the power to seize it, what the public purpose was, whether the owner was given the right to object, and whether compensation would be provided**.

6.6. Eviction Without Providing Documentation

On July 21, 2026, U Khin Maung Hla was summoned to a monastery, where an order requiring him to permanently leave the land was read to him.

He requested a copy of the order, but the document was not delivered to him on the dates specified.

Subsequently, soldiers and police took up positions on his land.

On August 3, 2026, approximately 30 soldiers arrived together with U Aung Thar Win and told him to leave the land, stating that if he did not leave, he would be sued and arrested, according to the information provided. He requested a formal legal order, but stated that he was not provided with any documentation.

If it is the case that, on July 21, 2026, U Khin Maung Hla was summoned to a monastery and an order requiring him to permanently leave the land was read to him, the key question is:

"Under which law, by which authority, and through what procedure was this order issued?"

As he requested a copy of the order but did not receive one, this demonstrates a lack of **transparency, notice, and due process**.

In particular, because the decision could result in the permanent loss of land rights, the affected person should have the right to know **the basis of the decision, the reasons for it, and its legal basis**.

6.7. Forced Eviction and Loss of Property

According to U Khin Maung Hla's account, after soldiers and police arrived, he was forced to gradually move the property he owned. Eventually, he had to leave the land without receiving any official legal documentation.

According to his statement, other people are currently catching shrimp and conducting business activities on his land.

This incident clearly constitutes an impact on his property rights and livelihood.

Recommendations to the ULA/AA

In light of the allegations and information documented in this report, the following recommendations are respectfully made to the ULA/AA:

1. **Immediately suspend the eviction and land-transfer process** concerning U Khin Maung Hla until an independent and impartial review of the matter has been completed.
2. **Provide U Khin Maung Hla with copies of all official decisions, orders, investigation records, and legal documents** relating to the investigation, land dispute, proposed transfer, and eviction.
3. **Clarify the legal basis for the seizure or acquisition of the land.** The ULA/AA should publicly identify the applicable law, the authority responsible for the decision, the stated public purpose, and the legal procedure followed.
4. **Ensure due process and the right to a fair hearing.** U Khin Maung Hla should be given adequate notice of any allegations or proceedings, a meaningful opportunity to respond, access to relevant evidence, and the right to challenge any decision affecting his land and property rights.
5. **Immediately cease any threats, intimidation, coercion, or use of armed personnel** to compel U Khin Maung Hla to surrender or "donate" his land. Any transfer of land should be based on genuine and informed consent and should not be obtained through threats of seizure, arrest, prosecution, or other forms of coercion.
6. **Conduct an independent investigation into the alleged statement, "If you do not donate it, we will seize it,"** and determine whether any official or security personnel engaged in intimidation, coercion, abuse of authority, or other misconduct.
7. **Review the legality of U Khin Maung Hla's existing land documentation and historical land transactions** from 2007 onward, including Form 105, Form (7), tax records, business licenses, and other relevant documentation. Any challenge to his land rights should be determined through a transparent and lawful process rather than through administrative or military coercion.
8. **Provide an effective remedy if the eviction or seizure is determined to have been unlawful.** Appropriate remedies should include, as applicable, restoration of possession, restitution of property, compensation for verified losses, and restoration of his ability to pursue his livelihood.
9. **Protect his remaining property and business assets** from unauthorized occupation, removal, destruction, or use by third parties while the dispute remains unresolved.
10. **Establish an independent land-dispute review mechanism** capable of reviewing complaints concerning land confiscation, forced transfers, eviction, and alleged abuses by officials or armed personnel. The mechanism should be impartial, accessible, transparent, and capable of issuing binding or otherwise effective remedies.
11. **Ensure that any future compulsory acquisition of land complies with applicable legal and human-rights standards,** including lawful authority, legitimate public purpose, prior notice, procedural safeguards, the right to challenge the decision, and appropriate compensation or other effective remedy.

12. **Ensure accountability for officials or personnel found responsible for unlawful conduct.** Where an investigation establishes threats, coercion, arbitrary deprivation of property, unlawful eviction, destruction of property, or abuse of authority, appropriate disciplinary, administrative, or judicial measures should be taken.
13. **Ensure non-retaliation.** U Khin Maung Hla, his family members, representatives, witnesses, and others assisting with the complaint should not face threats, arrest, prosecution, intimidation, or other retaliation for raising concerns or seeking legal remedies.
14. **Maintain transparent records of land-related decisions and communicate them to affected persons.** Decisions affecting land ownership, possession, use, or livelihood should be issued in writing, with clear reasons and information concerning available appeal or complaint procedures.
15. **Consider mediation or negotiated settlement where appropriate,** provided that any settlement is genuinely voluntary, informed, and free from threats or coercion, and that the parties have access to independent legal or other appropriate advice.

Conclusion

The ULA/AA should take immediate steps to ensure that any action concerning U Khin Maung Hla's land is conducted through a transparent, lawful, impartial, and rights-respecting process. Regardless of the nature of the political or administrative transition in the area, changes in governance should not result in the arbitrary deprivation of established property, land-use, or livelihood rights.

Where allegations of unlawful land acquisition, coercion, forced eviction, or abuse of authority arise, the appropriate response should be an independent investigation and a fair legal process rather than the use or threat of force. Effective remedies, including restitution and compensation where appropriate, should be available to any person whose rights are found to have been violated.

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Map Showing the Land Unlawfully Seized by ULA/AA



Google Map Location

[Click here](#)

RECORDED PHOTO



Soldiers of ULA/AA quartering private business compound without owner's consent

Location: Nga Man Shwe Mye Shrimp Farm

Date: Aug 14, 2026

Chapter (7)

Introduction to the International Covenant on Economic, Social and Cultural Rights (ICESCR)

The **International Covenant on Economic, Social and Cultural Rights (ICESCR)** is a major international human rights treaty that protects individuals' rights to work, livelihood, an adequate standard of living, and other economic, social, and cultural rights. Myanmar ratified the ICESCR in **2017**, and it entered into force for Myanmar on **January 6, 2018**.

In direct connection with this case, the following important provisions of the **ICESCR** are introduced below to help readers understand them more easily.

Relevant Provisions of the ICESCR

Article 2(1) – Obligation to Implement Rights

States Parties are required to take appropriate legislative, administrative, and other measures to progressively achieve the full realization of the rights recognized in the ICESCR. This provision establishes a fundamental obligation of the state.

Article 6 – Right to Work

Everyone has the right to the opportunity to earn a living through work that they freely choose or accept. Therefore, where the loss of land prevents a person from continuing a long-established business or livelihood, the situation may be considered in relation to the right to work.

Article 7 – Right to Just and Favorable Conditions of Work

Everyone has the right to just and favorable conditions of work, including remuneration that provides workers and their families with a decent living, among other rights.

Article 11(1) – Right to an Adequate Standard of Living

Everyone has the right to an adequate standard of living for themselves and their family, including adequate food, clothing, housing, and continuous improvement of living conditions.

Article 12 – Right to the Highest Attainable Standard of Health

Everyone has the right to the enjoyment of the highest attainable standard of physical and mental health. If the loss of land and livelihood results in a deterioration of living conditions, this right may also become highly relevant.

Chapter (8)

ULA/AA's Failure to Understand the Provisions of the ICESCR

In the case involving the seizure by ULA/AA of U Khin Maung Hla's **Ngan Man Shwe Myay shrimp farm**, which he had been legally operating for nearly 20 years, it is evident that the loss of land and property adversely affected his livelihood and living conditions.

The incident that resulted in the loss of U Khin Maung Hla's land and shrimp-farming business demonstrates that **ULA/AA disregarded the right to work under Article 6 and the right to an adequate standard of living under Article 11(1) of the ICESCR.**

It should be noted that **the ICESCR does not contain a specific provision that directly and comprehensively protects private property ownership as a standalone right.**

Therefore, it would not be legally accurate to conclude that **"the ICESCR directly protects private land ownership."** However, the loss of land and livelihood had a clear impact on **his right to work, his means of livelihood, and his right to an adequate standard of living**, particularly in light of the taxes and other obligations associated with his established business.

Accordingly, it can be argued that the actions of **ULA/AA failed to respect and take into account the rights and principles recognized under the ICESCR**, particularly where those actions substantially disrupted his livelihood and living conditions.

In particular, it is evident that **ULA/AA failed to adequately understand or respect the right to work under Article 6 and the right to an adequate standard of living under Article 11 of the ICESCR.**

Chapter (9)

Introduction to the Provisions of the Geneva Conventions

1. Geneva Conventions – Common Article 3

Common Article 3(1)

“Persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed hors de combat ... shall in all circumstances be treated humanely...”

This provision requires civilians and other persons who are no longer directly participating in hostilities to be treated humanely.

In particular, it prohibits:

“violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture;”

This means that **violence to life and person, including murder, mutilation, cruel treatment, and torture, is prohibited.**

It also prohibits:

“outrages upon personal dignity, in particular humiliating and degrading treatment;”

This means that **outrages upon personal dignity, particularly humiliating and degrading treatment, are prohibited.**

Relevance to this case — U Khin Maung Hla had operated his business for nearly 20 years. In connection with his removal from his business and land, there are findings indicating that members of the armed group ULA/AA may have threatened, used violence against, or subjected him to treatment that affected his human dignity. Therefore, there are serious concerns that the conduct of ULA/AA may have violated the standards established under **Common Article 3**.

2. Additional Protocol II – Article 14

Protection of Objects Indispensable to the Survival of the Civilian Population

“Starvation of civilians as a method of combat is prohibited. It is therefore prohibited to attack, destroy, remove or render useless, for that purpose, objects indispensable to the survival of the civilian population...”

This provision prohibits **attacking, destroying, removing, or rendering useless objects indispensable to the survival of the civilian population** for the purpose of using starvation as a method of combat.

Relevance to this case — U Khin Maung Hla’s business and land constituted essential resources for his survival and livelihood as a civilian. Although U Khin Maung Hla submitted petitions to relevant authorities seeking assistance in protecting his livelihood, no effective remedy was provided. If it can be established by evidence that his livelihood resources were removed or rendered unusable for purposes related to the conflict, the conduct may raise serious concerns under **Article 14**.

3. Additional Protocol II – Article 17

Prohibition of Forced Movement of Civilians

Article 17(1)

“The displacement of the civilian population shall not be ordered for reasons related to the conflict unless the security of the civilians involved or imperative military reasons so demand.”

This provision prohibits the forced displacement of civilians for reasons related to an armed conflict. Civilians may only be displaced where their security or imperative military reasons so require.

In addition:

“Should such displacements have to be carried out, all possible measures shall be taken in order that the civilian population may be received under satisfactory conditions of shelter, hygiene, health, safety and nutrition.”

This means that, where displacement is unavoidable, **all possible measures must be taken to ensure that civilians are provided with adequate shelter, hygiene, health care, safety, and nutrition**.

Relevance to this case — If it can be established through evidence that U Khin Maung Hla was ordered to leave his land and was forced to leave through the use or presence of armed personnel, there are serious concerns that the conduct may constitute **forced displacement** when assessed against the standards of **Article 17**.

4. Additional Protocol II – Article 4(2)(g)

Article 4(2) establishes humane treatment and fundamental guarantees and, in particular, prohibits:

“pillage;”

This means **the looting or seizure of property by force**.

Therefore, if evidence establishes that U Khin Maung Hla’s land, shrimp-farming business, and related property were unlawfully seized by force for the purpose of taking or using them for the benefit of others, the conduct may be assessed in relation to the **prohibition of pillage**.

5. Customary IHL – Prohibition of Pillage

Under **Customary International Humanitarian Law (Customary IHL)**, pillage is also prohibited. In particular, during armed conflict, **the looting or appropriation of civilian property for personal benefit or unlawful gain is prohibited**.

Accordingly, the report may state:

“The prohibition of pillage is a rule of customary international humanitarian law applicable in both international and non-international armed conflicts.”

The prohibition of pillage is therefore a rule of **Customary International Humanitarian Law** that applies in both **international armed conflicts and non-international armed conflicts**.

In relation to the seizure of the land in this case, Police Chief U Aung Thar Win reportedly read out an order and pressured U Khin Maung Hla to relinquish his livelihood business, deployed armed forces, and had armed personnel establish a presence on his business land. **If supported by sufficient evidence, such conduct may constitute conduct analogous to pillage or an unlawful appropriation of civilian property.**

Chapter (10)

Potential Consequences Arising from ULA/AA's Limited Understanding of International Human Rights Standards

As ULA/AA exercises administrative authority and effective control over territory and civilian populations, it is necessary for the organization to understand international human rights standards and international humanitarian law (IHL) standards and incorporate them into its governance practices. If there is insufficient understanding or implementation of these standards, it may result in the arbitrary exercise of power, violations of civilians' fundamental rights, and a system of governance lacking accountability.

In the case of U Khin Maung Hla's land, pressuring him to "donate" the land, ordering him to leave the property, using armed personnel to force him to leave, and failing to provide clear and specific legal documents or orders are inconsistent with fundamental principles of international human rights law, including **legality, non-arbitrariness, procedural fairness, proportionality, and the right to an effective remedy.**

Furthermore, where land is a fundamental resource for a person's livelihood, forcibly depriving that person of the land may affect the **right to work under Article 6 of the ICESCR** and the **right to an adequate standard of living under Article 11**. Therefore, treating land administration merely as an internal legal or administrative matter may disregard human rights obligations and the legal limitations applicable to the exercise of power.

It may be criticized that ULA/AA does not adequately understand international human rights treaties. However, where acts contrary to these standards occur repeatedly, this may indicate **weaknesses in ULA/AA's understanding, training, implementation, or internal mechanisms for effectively controlling the exercise of authority in accordance with international human rights and IHL standards.**

In particular, when an organization exercising authority as a **de facto authority** begins making decisions concerning civilians' property, livelihoods, and living conditions, the mere assertion that "we have authority" does not grant an **unlimited right to exercise that authority**. The exercise of power must comply with legality, non-arbitrariness, procedural fairness, proportionality, and the protection of human rights.

Therefore, the conduct identified in this case should not be examined merely as an isolated individual incident. Rather, it should be assessed more broadly to determine **the extent to which international human rights standards are understood and implemented within ULA/AA's governance system and what legal and institutional limitations exist on the exercise of its authority.**

Potential Consequences Arising from ULA/AA's Limited Understanding of the Geneva Conventions and IHL Standards

As an organization exercising authority and armed force during an armed conflict, it is important for ULA/AA to understand and implement the fundamental principles of **International Humanitarian Law (IHL)**. In particular, **Common Article 3 of the Geneva Conventions** provides fundamental protections requiring persons who are not actively participating in hostilities to be treated humanely during non-international armed conflicts.

If ULA/AA has insufficient understanding of or compliance with these standards, the risk of the unlawful use of authority and armed force against civilians may increase. This may result in conduct such as **threatening civilians, cruel treatment, violations of human dignity, pillage of property, and forced displacement**.

In the incidents relating to U Khin Maung Hla's land and shrimp-farming business, the pressure placed on him to leave the land, his removal through the use of armed personnel, and the absence of a clear and specific order or established procedure concerning his property are inconsistent with fundamental humanitarian principles under IHL.

Furthermore, **the pillage of private property is prohibited under IHL during armed conflict**. Therefore, the mere assertion of authority does not automatically make the seizure of civilians' property lawful.

Similarly, forcibly displacing a civilian for reasons related to an armed conflict is a matter of particular concern under IHL. Forcibly removing civilians without a genuine necessity for their security or imperative military reasons may give rise to serious humanitarian concerns.

Therefore, these incidents should not be viewed solely as individual cases. They should also be examined in order to assess the effectiveness of **ULA/AA's use of armed authority, civilian-protection mechanisms, understanding and training concerning IHL standards, and internal accountability mechanisms**.

In particular, **lack of knowledge of IHL does not automatically provide an exemption from responsibility for human rights or humanitarian harm resulting from the exercise of authority**. As an organization exercising administrative and armed authority in practice, ULA/AA has a responsibility to understand and implement relevant IHL standards in order to protect the safety and human dignity of civilians.

Chapter (11)

Consequences of the Absence of a Constitution and a Democratically Elected Legislature

If ULA/AA functions as a **de facto authority** exercising administrative, judicial, and public decision-making powers in certain territories, important questions arise concerning the constitutional basis on which it exercises power, from whom that authority is derived, the extent to which such authority is limited, and how the rights of the population are protected.

In the absence of a constitution approved by the people or a clear constitutional framework, the source of governmental authority, the limits of that authority, and mechanisms of accountability may remain unclear. Under such circumstances, orders and decisions issued by the governing authority may depend more on the decisions of those who hold power than on established law, thereby weakening the **rule of law** and **non-arbitrary governance**.

Furthermore, where there is no legislature composed of **representatives elected by the people**, questions arise as to which body enacts laws, land regulations, taxation systems, and orders that may affect people's property and livelihoods, and according to what procedures such laws and orders are adopted. In particular, where there is no meaningful public representation or public consultation, it becomes difficult to determine whether laws and administrative decisions genuinely reflect the will and needs of the population.

Such a situation may weaken the **separation of powers** and **checks and balances**. If executive, legislative, and judicial powers are not institutionally separated and independently exercised, authority may become concentrated in a single institution or group, reducing institutional safeguards against the abuse of power.

This problem may become particularly apparent in cases involving property and livelihoods, such as the land dispute concerning U Khin Maung Hla. Where there is no clear legal basis for the seizure of land or removal from property, no prior notice, no opportunity to object, no independent and impartial review, and no effective remedy, there is an increased risk that administrative authority may be used as an **arbitrary exercise of power**.

Moreover, the absence of a democratically elected legislature may weaken the **democratic legitimacy** and **public accountability** of those exercising authority. If there is no mechanism through which representatives of the people can debate, amend, and oversee legislation, decisions with significant consequences for civilians may be made by a single authority. Consequently, the person or institution holding the highest level of authority may bear the greatest responsibility for such decisions and their consequences.

Where authority is exercised without an effective separation of powers and without representative legislative institutions, a disproportionate amount of responsibility may ultimately fall upon the head of the executive authority.

In the case of U Khin Maung Hla, the lack of a clearly defined separation of powers within ULA/AA may have enabled the police chief to intervene in a matter that had already been adjudicated by a court. Under the general principle of separation of powers, the police chief would ordinarily fall under the executive branch. Therefore, responsibility for addressing such intervention would ultimately rest with the highest authority within the executive branch.

In relation to what ULA/AA refers to as the “**Arakan People’s Government**,” an important question therefore arises: **Who is the highest authority within the executive branch? Is it General Twan Mrat Naing, or someone else?** Where there is no constitution clearly defining the structure of government, the distribution of powers, and the responsibilities of officials, such uncertainty can become a source of institutional disorder and arbitrary governance.

Therefore, the absence of an established constitution, a representative legislature, an independent judiciary, and effective **checks and balances** may weaken not only the legitimacy of administrative authority but also **human rights protections, property rights, procedural fairness, and access to effective remedies**. This represents a particularly important human-rights governance challenge for an organization exercising authority as a **de facto authority**.